Sent:	10/6/2023 9:53:40 AM
From:	BSCC ORT <ORT@bscc.ca.gov
To:	"BSCC" , "Judy" , "Cameron" , "Ignacio"
Cc:	"Trent" , "Brandon" , Escobar, Eddie@BSCC, "Scott M."
Bcc:	
Importance:	Normal
Subject:	ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23
Attachments:	image001.png , 23-27 ORTP Grant Agreement - Daly City PD 1150-23.pdf

---

Greetings Judy,

Will you please have your authorized officer, Cameron Christensen, fill out and sign the last page of your grant agreement, APPENDIX B: Grantee Assurance for Non-Governmental Organizations? If you don't have any to list, just put N/A and fill out the table below it. I was unable to add the NGO form provided with your proposal because your signed grant agreement was protected and required a password . Let me know if you have any questions.

Happy Friday!

Jessica Vlavianos | Associate Governmental Program Analyst
Corrections Planning and Grant Programs
BOARD OF STATE AND COMMUNITY CORRECTIONS
2590 Venture Oaks Way, Suite #200
Sacramento, CA 95833
Email jessica.vlavianos@bscc.ca.gov
LEADERSHIP « EXCELLENCE « SUPPORT

From: BSCC ORT <ORT@bscc.ca.gov>
Sent: Wednesday, October 4, 2023 9:46 AM
To: Judy Huey <jhuey@dalycity.org>; BSCC ORT <ORT@bscc.ca.gov>; Cameron Christensen <cchristensen@dalycity.org>; Ignacio Reyes <ireyes@dalycity.org>
Cc: Trent Waterman <twaterman@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>; Escobar, Eddie@BSCC <Eddie.Escobar@bscc.ca.gov>; Scott M. Bowman <sbowman@dalycity.org>
Subject: RE: [EXTERNAL] ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23

Greetings Judy,

Thank you, we have now received both your signed board resolution and grant agreement. The documents are now sent through internal review before the agreement is signed by our Deputy Director which can take up to a few weeks. Once signed, we will email a copy back to you and

then the contract will be fully executed. However, as soon as the grant contract date starts (which was Oct 1st), you can start incurring expenditures. Please be aware that they will not be eligible for reimbursement until you receive and submit your invoices and some purchases might not be allowable. For any purchase over $3,500, preauthorization to purchase will be required by Eddie. If you have any questions about allowable expenses, please contact your Field Rep, Eddie Escobar, cell number 916.599.2125 and email contact eddie.escobar@bscc.ca.gov prior to making those purchases.

The virtual grantee orientation in mid-October will go over specific grant requirements such as the purchasing and responsibilities as a lead public agency . The BSCC team will go over administrative and program responsibilities in detail on Day 2 of the orientation on October 18th. Daly City will attend Day 2 (Oct 18th) and Day 3 (Oct 19th) as an ORT Prevention grantee. I attached a copy of the agenda for easy reference. Specific requirements can also be found in the ORT Prevention RFP. There is a link to it on the BSCC's website under the Organized Retail Theft Prevention Grant Program page. Here is a link to it for easy reference. https://www.bscc.ca.gov/organized-retail-theft-grant-program/ . Another good tool is the BSCC Grant Administration Guide. It was just updated in July 2023, so it has the most current up-to-date information in it. It's located under Grantee Resources on the BSCC's website under the Corrections Planning and Grant Programs page. Here is a link to it for easy reference. https://www.bscc.ca.gov/s_correctionsplanningandprograms/. Let me know if you have any further questions.

Have a great day!

Jessica Vlavianos | Associate Governmental Program Analyst
Corrections Planning and Grant Programs
BOARD OF STATE AND COMMUNITY CORRECTIONS
2590 Venture Oaks Way, Suite #200
Sacramento, CA 95833
Email jessica.vlavianos@bscc.ca.gov
LEADERSHIP « EXCELLENCE « SUPPORT

From: Judy Huey <jhuey@dalycity.org>
Sent: Tuesday, October 3, 2023 5:26 PM
To: BSCC ORT <ORT@bscc.ca.gov>; Cameron Christensen <cchristensen@dalycity.org>; Ignacio Reyes <ireyes@dalycity.org>
Cc: Trent Waterman <twaterman@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>; Escobar, Eddie@BSCC <Eddie.Escobar@bscc.ca.gov>; Scott M. Bowman <sbowman@dalycity.org>
Subject: RE: [EXTERNAL] ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23

Hello Jessica,

Please see attached signed resolution from our city council. Please confirm that our grant agreement is now fully executed and we can be reimbursed for grant expenditures (hiring of personnel and procurement).

1. We wanted to ask if we as the Lead Public Agency procures on behalf of our partner cities or can our partner cities procure on their own (we prefer the latter)? If each city procures for itself, we each follow our own city's procurement rules? How does reimbursement look like?
2. For any purchase over $3,500, do we send Eddie an email with the quote to ask for preauthorization to purchase?
3. Do we need to check vendors for debarment? If we do, is there a threshold to check for debarment, for example anything over $25,000 referenced in the grant administration guide or there is no threshold and all vendors and any amount needs to be checked for debarment?
4. We are looking to hire a grant administrator, are there any requirements from BSCC for the grant administrator role? Our grant application stated that we will hire a grant administrator with grant experience; however, we have a desired potential applicant who we've worked with in the past without grant experience, but capable of learning, is that acceptable?
5. If procuring and contracting with an evaluation firm to complete the evaluation required by this grant, cause the evaluation firm to be an Non-Governmental Organization?

We appreciate all your guidance!

Best Regards,
Judy

Judy Huey
Management Analyst
Daly City Police Department
333 90th Street
Daly City, CA 94015
650.746.8373

From: BSCC ORT <ORT@bscc.ca.gov>
Sent: Thursday, September 21, 2023 1:25 PM
To: Cameron Christensen <cchristensen@dalycity.org>; BSCC ORT <ORT@bscc.ca.gov>; Ignacio Reyes <ireyes@dalycity.org>; Judy Huey <jhuey@dalycity.org>
Cc: Trent Waterman <twaterman@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>; Escobar, Eddie@BSCC <Eddie.Escobar@bscc.ca.gov>
Subject: RE: [EXTERNAL] ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23

CAUTION: EXTERNAL SENDER. Verify before you respond, click links or open attachments. Questions? Contact ISD.

Greeting,

That's a great question. Only the Lead Public Agency of the multi-agency grant has to provide a signed board resolution from their city council. So in your case, only Daly City is required to provide a signed board resolution along with their signed grant agreement to have their contract executed. Let me know if you have any other questions.

Jessica Vlavianos | Associate Governmental Program Analyst
Corrections Planning and Grant Programs
BOARD OF STATE AND COMMUNITY CORRECTIONS
2590 Venture Oaks Way, Suite #200
Sacramento, CA 95833
Email jessica.vlavianos@bscc.ca.gov
LEADERSHIP « EXCELLENCE « SUPPORT

From: Cameron Christensen <cchristensen@dalycity.org>
Sent: Thursday, September 21, 2023 12:50 PM
To: BSCC ORT <ORT@bscc.ca.gov>; Ignacio Reyes <ireyes@dalycity.org>; Judy Huey <jhuey@dalycity.org>
Cc: Trent Waterman <twaterman@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>; Escobar, Eddie@BSCC <Eddie.Escobar@bscc.ca.gov>
Subject: RE: [EXTERNAL] ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23

Hello Jessica,

I do have a quick question. Does San Mateo PD or San Bruno PD need to receive their respective Council approval as well, or is just Daly City since we are the applicant supporting the multi-agency grant?

Thanks, and if there is discussion you can call my cell. Emp Personal Info

Cameron Christensen

From: BSCC ORT <ORT@bscc.ca.gov>
Sent: Thursday, September 21, 2023 12:45 PM
To: Cameron Christensen <cchristensen@dalycity.org>; BSCC ORT <ORT@bscc.ca.gov>; Ignacio Reyes <ireyes@dalycity.org>; Judy Huey <jhuey@dalycity.org>
Cc: Trent Waterman <twaterman@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>; Escobar, Eddie@BSCC <Eddie.Escobar@bscc.ca.gov>
Subject: RE: [EXTERNAL] ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23

CAUTION: EXTERNAL SENDER. Verify before you respond, click links or open attachments. Questions? Contact ISD.

Greeting,

Thank you, we will note the date of your City Council meeting in our records. Please be sure to keep us in the loop if that date should change.

Thank you,
Jessica

From: Cameron Christensen <cchristensen@dalycity.org>
Sent: Thursday, September 21, 2023 12:32 PM
To: BSCC ORT <ORT@bscc.ca.gov>; Ignacio Reyes <ireyes@dalycity.org>; Judy Huey <jhuey@dalycity.org>
Cc: Trent Waterman <twaterman@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>; Escobar, Eddie@BSCC <Eddie.Escobar@bscc.ca.gov>
Subject: RE: [EXTERNAL] ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23

Good afternoon,

Request for grant acceptance and the subsequent resolution are going to Council at the regular meeting this coming Monday, September 25. I hope to get the documentation to you shortly after.

Regards,

Cameron Christensen
Captain #91
Acting Chief of Police
Daly City Police Department
650-991-8188

From: BSCC ORT <ORT@bscc.ca.gov>
Sent: Thursday, September 21, 2023 11:07 AM
To: Ignacio Reyes <ireyes@dalycity.org>; BSCC ORT <ORT@bscc.ca.gov>; Cameron Christensen <cchristensen@dalycity.org>; Judy Huey <jhuey@dalycity.org>
Cc: Trent Waterman <twaterman@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>; Escobar, Eddie@BSCC <Eddie.Escobar@bscc.ca.gov>
Subject: RE: [EXTERNAL] ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23

CAUTION: EXTERNAL SENDER. Verify before you respond, click links or open attachments. Questions? Contact ISD.

Greeting Ignacio,

Thank you, we received your signed grant agreement. We will also need a signed board resolution to execute your contract. We understand many cities are awaiting their city council meeting to receive their signed resolution, so just keep us in the loop and let us know when we should be expecting to receive your signed resolution.

Thank you, Jessica

Jessica Vlavianos | Associate Governmental Program Analyst
Corrections Planning and Grant Programs
BOARD OF STATE AND COMMUNITY CORRECTIONS
2590 Venture Oaks Way, Suite #200
Sacramento, CA 95833
Email jessica.vlavianos@bscc.ca.gov
LEADERSHIP « EXCELLENCE « SUPPORT

From: Ignacio Reyes <ireyes@dalycity.org>
Sent: Wednesday, September 20, 2023 2:25 PM
To: BSCC ORT <ORT@bscc.ca.gov>; Cameron Christensen <cchristensen@dalycity.org>; Judy Huey <jhuey@dalycity.org>
Cc: Trent Waterman <twaterman@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>; Escobar, Eddie@BSCC <Eddie.Escobar@bscc.ca.gov>
Subject: RE: [EXTERNAL] ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23

Good afternoon, Ms. Vlavianos,

I've attached the completed and signed ORTP Grant Agreement. Please let me know if you need anything else from our agency.

Thank you,

Ignacio

Ignacio Reyes, Lieutenant #107
Support Services Bureau
Daly City Police Department
333-90th Street
Daly City, CA 94015
Desk: 650.991.8274
Cell: 650.483.9509

From: BSCC ORT <ORT@bscc.ca.gov>
Sent: Tuesday, September 19, 2023 3:22 PM
To: Ignacio Reyes <ireyes@dalycity.org>; Cameron Christensen <cchristensen@dalycity.org>; Judy Huey <jhuey@dalycity.org>
Cc: Trent Waterman <twaterman@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>; BSCC ORT <ORT@bscc.ca.gov>; Escobar, Eddie@BSCC <Eddie.Escobar@bscc.ca.gov>
Subject: [EXTERNAL] ACTION REQUIRED: 23-27 ORTP Grant Agreement- Daly City PD 1150-23
Importance: High

CAUTION: EXTERNAL SENDER. Verify before you respond, click links or open attachments. Questions? Contact ISD.

Good afternoon,

Attached please find the 2023 Organized Retail Theft Prevention Grant contract package, which includes a Standard Agreement (Form STD 213) and the Grant Agreement Contract (including Exhibits A, B, C, D, Attachment 1, Attachment 2, Appendix A, Appendix B). Please make special note of the following:

- Budgets. BSCC is using the budget table provided within your proposal for the grant agreement. Be advised that your Field Representative may be contacting you soon to request additional details and/or discuss minor modifications that need to be made to your budget line items. Although expenditures/items are listed in your proposal's budget narrative, there may be circumstances where those expenditures/items are ineligible or may need prior approval from the BSCC prior to purchase.
- Authorized Officer. Regarding the individual that will sign the grant agreement:
    - For Governmental Grantees: Please note that before grant funds can be awarded, governmental agencies must submit either (1) a resolution from the City Council that delegates authority to the individual authorized to execute the grant agreement or (2) documentation to indicate that the individual signing the grant agreement has been vested with plenary authority to execute grant agreements (e.g., a municipal ordinance or charter, etc.).

Once you have reviewed the Organized Retail Theft Prevention contract package, please complete the following:

- Carefully review the entire Grant Agreement (attached). Retain a copy for your records. Upon contract execution, the attached Grant Agreement becomes your contractually obligated scope of work.

- Sign the Standard Agreement (attached). Grant agreements can be either signed electronically or printed, signed, and then scanned. The grant agreement must be signed and dated by the Authorized Officer, Cameron Christensen.
- On or before September 28, 2023, email the Standard Agreements) to me at this email address ORT@bscc.ca.gov.

Your contract becomes fully executed only when the Standard Agreement has been signed by both you and the BSCC.

We are aware that some grantees will experience delays in obtaining the required resolution or other documentation. Please proceed with signing the Grant Agreement; however, the resolution or required documentation must be received at the BSCC as soon as possible before the contract can be fully executed and you can be reimbursed for grant expenditures. We are on a tight timeline for funding, so please provide this as soon as possible.

Once your contract has been executed, you may submit invoices for eligible expenses according to the schedule outlined in the Grant Agreement, but please note the following:

- Invoices submitted in the absence of the required documentation noted above will be processed, but reimbursement will be held until the appropriate documentation is received at the BSCC.
- Any expenses incurred prior to the start date of the contract cannot be reimbursed.

If you have any questions, please do not hesitate to contact me.

Sincerely,

Jessica Vlavianos | Associate Governmental Program Analyst
Corrections Planning and Grant Programs
BOARD OF STATE AND COMMUNITY CORRECTIONS
2590 Venture Oaks Way, Suite #200
Sacramento, CA 95833
Email jessica.vlavianos@bscc.ca.gov
LEADERSHIP « EXCELLENCE « SUPPORT

From: BSCC ORT <ORT@bscc.ca.gov>
Sent: Friday, September 15, 2023 10:54 AM
To: Ignacio Reyes <ireyes@dalycity.org>; BSCC ORT <ORT@bscc.ca.gov>; Cameron Christensen <cchristensen@dalycity.org>
Cc: Judy Huey <jhuey@dalycity.org>; Trent Waterman <twaterman@dalycity.org>; Michael Barton <mbarton@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>
Subject: RE: [EXTERNAL] REQUEST: 23-27- ORTP- Daly City PD- Contact List Update

Received, thank you! I will be providing next steps soon, so be on the lookout for an email from me next week. Congratulations on your award and we look forward to working with you.

Jessica Vlavianos | Associate Governmental Program Analyst
Corrections Planning and Grant Programs
BOARD OF STATE AND COMMUNITY CORRECTIONS
2590 Venture Oaks Way, Suite #200
Sacramento, CA 95833

Email jessica.vlavianos@bscc.ca.gov
LEADERSHIP « EXCELLENCE « SUPPORT

From: Ignacio Reyes <ireyes@dalycity.org>
Sent: Thursday, September 14, 2023 2:24 PM
To: BSCC ORT <ORT@bscc.ca.gov>; Cameron Christensen <cchristensen@dalycity.org>
Cc: Judy Huey <jhuey@dalycity.org>; Trent Waterman <twaterman@dalycity.org>; Michael Barton <mbarton@dalycity.org>; Brandon Scholes <bscholes@dalycity.org>
Subject: RE: [EXTERNAL] REQUEST: 23-27- ORTP- Daly City PD- Contact List Update

Good afternoon,

I've attached the completed Grantee Contact Information sheet.

Please let me know if you need anything else.

Thank you,

Ignacio

Ignacio Reyes, Lieutenant #107
Support Services Bureau
Daly City Police Department
333-90th Street
Daly City, CA 94015
Desk: 650.991.8274
Cell: 650.483.9509

From: BSCC ORT <ORT@bscc.ca.gov>
Sent: Wednesday, September 13, 2023 9:17 AM
To: Cameron Christensen <cchristensen@dalycity.org>
Cc: BSCC ORT <ORT@bscc.ca.gov>; Judy Huey <jhuey@dalycity.org>; Ignacio Reyes <ireyes@dalycity.org>
Subject: [EXTERNAL] REQUEST: 23-27- ORTP- Daly City PD- Contact List Update
Importance: High

CAUTION: EXTERNAL SENDER. Verify before you respond, click links or open attachments. Questions? Contact ISD.

Good Morning,

As you know, your organization has been recommended for funding through the Organized Retail Theft grant. Grant awards are pending Board approval, which is scheduled for September 14, 2023. In preparation for your possible funding approval, **please complete the attached Grantee Contact Information Sheet and return it as soon as possible.** Please leave the Grant Agreement number blank. We will use this information to create your Grant Agreement if you are awarded. Be on the lookout for more information. And Just in case you missed it the link to the Board meeting, it can be found here https://www.bscc.ca.gov/events/bscc-board-meeting-9-14-23/

Thank you!

Jessica Vlavianos | Associate Governmental Program Analyst
Corrections Planning and Grant Programs
BOARD OF STATE AND COMMUNITY CORRECTIONS
2590 Venture Oaks Way, Suite #200
Sacramento, CA 95833
Office phone: 916.914.2606
Email jessica.vlavianos@bscc.ca.gov
LEADERSHIP « EXCELLENCE « SUPPORT


DALY CITY
POLICE
DALY CITY
CALIFORNIA

STATE OF CALIFORNIA DEPARTMENT OF GENERAL SERVICES | SCO ID:5227-BSCC- 1150-23

STANDARD AGREEMENT
STD 213 (Rev 03/2019)

AGREEMENT NUMBER	PURCHASING AUTHORITY NUMBER (If Applicable)
BSCC 1150- 23	

1. This Agreement is entered into between the Contracting Agency and the Contractor named below:

CONTRACTING AGENCY NAME
BOARD OF STATE AND COMMUNITY CORRECTIONS

CONTRACTOR NAME
Daly City Police Department

2. The term of this Agreement is:

START DATE
OCTOBER 1, 2023

THROUGH END DATE
JUNE 1, 2027

3. The maximum amount of this Agreement is:
$8,033,830.00

4. The parties agree to comply with the terms and conditions of the following exhibits, attachments, and appendices which are by this reference made a part of the Agreement.

EXHIBITS	TITLE	PAGES
Exhibit A	Scope of Work	3
Exhibit B	Budget Detail and Payment Provisions	4
Exhibit C	General Terms and Conditions (04/2017)	4
Exhibit D	Special Terms and Conditions	5
Attachment 1*	Organized Retail Theft Prevention Grant Program Request for Proposals	*
Attachment 2	Organized Retail Theft Prevention Grant Program Grant Proposal	45
Appendix A	Organized Retail Theft Grant Program Scoring Panel Roster	1
Appendix B	Grantee Assurance for Non-Governmental Organizations	2

** This item is hereby incorporated by reference and can be viewed at: https://www.bscc.ca.gov/organized-retail-theft-grant-program/*

IN WITNESS WHEREOF, THIS AGREEMENT HAS BEEN EXECUTED BY THE PARTIES HERETO.

CONTRACTOR

CONTRACTOR NAME (if other than an individual, state whether a corporation, partnership, etc.)
Daly City Police Department

CONTRACTOR BUSINESS ADDRESS	CITY	STATE	ZIP
333 90th Street	Daly City	CA	94015

PRINTED NAME OF PERSON SIGNING	TITLE
Cameron Christensen	Chief of Police

CONTRACTOR AUTHORIZED SIGNATURE	DATE SIGNED
Cameron Christensen (Sep 20, 2023 12:39 PDT)	Sep 20, 2023

STATE OF CALIFORNIA

CONTRACTING AGENCY NAME
BOARD OF STATE AND COMMUNITY CORRECTIONS

CONTRACTING AGENCY ADDRESS	CITY	STATE	ZIP
2590 Venture Oaks Way, Suite 200	Sacramento	CA	95833

PRINTED NAME OF PERSON SIGNING	TITLE
COLLEEN CURTIN	Deputy Director

CONTRACTING AGENCY AUTHORIZED SIGNATURE	DATE SIGNED

CALIFORNIA DEPARTMENT OF GENERAL SERVICES APPROVAL: EXEMPT PER SCM, VOLUME 1, CH. 4.06

EXHIBIT A: SCOPE OF WORK

1. GRANT AGREEMENT – Organized Retail Theft Grant Program

This Grant Agreement is between the State of California, Board of State and Community Corrections (hereafter referred to as BSCC) and Daly City Police Department (hereafter referred to as the Grantee).

2. PROJECT SUMMARY AND ADMINISTRATION

A. The Organized Retail Theft Grant Program was established in Senate Bill 154 (SB 154) (Chapter 43, Statutes of 2022). Organized Retail Theft Grant Program funds shall be used to support local law enforcement agencies in preventing and responding to organized retail theft, motor vehicle or motor vehicle accessory theft, or cargo theft.

B. Grantee agrees to administer the project in accordance with Attachment 1: Organized Retail Theft Grant Program Request for Proposals (incorporated by reference) and Attachment 2: Organized Retail Theft Grant Program Grant Proposal, which is attached and hereto and made part of this agreement.

3. PROJECT OFFICIALS

A. The BSCC's Executive Director or designee shall be the BSCC's representative for administration of the Grant Agreement and shall have authority to make determinations relating to any controversies that may arise under or regarding the interpretation, performance, or payment for work performed under this Grant Agreement.

B. The Grantee's project officials shall be those identified as follows:

Authorized Officer with legal authority to sign:
Name: Cameron Christensen
Title: Chief of Police
Address: 333 90th Street, Daly City CA 94015
Phone: 650-991-8188
Email: cchristensen@dalycity.org

Designated Financial Officer authorized to receive warrants:
Name: Judy Huey
Title: Police Management Analyst
Address: 333 90th Street, Daly City CA 94015
Phone: 650-746-8373
Email: jhuey@dalycity.org

Project Director authorized to administer the project:
Name: Ignacio Reyes
Title: Police Lieutenant
Address: 333 90th Street, Daly City CA 94015
Phone: 650-483-9509
Email: ireyes@dalycity.org

C. Either party may change its project representatives upon written notice to the other party.

EXHIBIT A: SCOPE OF WORK

D. By signing this Grant Agreement, the Authorized Officer listed above warrants that he or she has full legal authority to bind the entity for which he or she signs.

4. DATA COLLECTION

Grantees will be required to comply with all data collection and reporting requirements as described in Attachment 1: Organized Retail Theft Grant Program Request for Proposals (incorporated by reference) and Attachment 2: Organized Retail Theft Grant Program Grant Proposal.

5. REPORTING REQUIREMENTS

A. Grantee will submit quarterly progress reports in a format prescribed by the BSCC. These reports, which will describe progress made on program objectives and include required data, shall be submitted according to the following schedule:

Quarterly Progress Report Periods	Due no later than:
1. October 1, 2023 to December 31, 2023	February 15, 2024
2. January 1, 2024 to March 31, 2024	May 15, 2024
3. April 1, 2024 to June 30, 2024	August 15, 2024
4. July 1, 2024 to September 30, 2024	November 15, 2024
5. October 1, 2024 to December 31, 2024	February 15, 2025
6. January 1, 2025 to March 31, 2025	May 15, 2025
7. April 1, 2025 to June 30, 2025	August 15, 2025
8. July 1, 2025 to September 30, 2025	November 15, 2025
9. October 1, 2025 to December 31, 2025	February 15, 2026
10. January 1, 2026 to March 31, 2026	May 15, 2026
11. April 1, 2026 to June 30, 2026	August 15, 2026
12. July 1, 2026 to September 30, 2026	November 15, 2026
13. October 1, 2026 to December 31, 2026	February 15, 2027

B. Evaluation Documents	Due no later than:
1. Local Evaluation Plan	April 1, 2024
2. Final Local Evaluation Report	June 1, 2027

C. Other	Due no later than:
Financial Audit Report	June 1, 2027

Grantees that are unable to demonstrate that they are making sufficient progress toward project goals and objectives and show that funds are being spent in accordance with the Grant Agreement could be subject to a withholding of funds.

6. PROJECT RECORDS

A. The Grantee shall establish an official file for the project. The file shall contain adequate documentation of all actions taken with respect to the project, including copies of this Grant Agreement, approved program/budget modifications, financial records and required reports.

EXHIBIT A: SCOPE OF WORK

B. The Grantee shall establish separate accounting records and maintain documents and other evidence sufficient to properly reflect the amount, receipt, and disposition of all project funds, including grant funds and any matching funds by the Grantee and the total cost of the project. Source documentation includes copies of all awards, applications, approved modifications, financial records, and narrative reports.

C. Personnel and payroll records shall include the time and attendance reports for all individuals reimbursed under the grant, whether they are employed full-time or part-time. Time and effort reports are also required for all subcontractors and consultants.

D. The grantee shall maintain documentation of donated goods and/or services, including the basis for valuation.

E. Grantee agrees to protect records adequately from fire or other damage. When records are stored away from the Grantee's principal office, a written index of the location of records stored must be on hand and ready access must be assured.

F. All Grantee records relevant to the project must be preserved a minimum of three (3) years after closeout of the grant project and shall be subject at all reasonable times to inspection, examination, monitoring, copying, excerpting, transcribing, and auditing by the BSCC or designees. If any litigation, claim, negotiation, audit, or other action involving the records has been started before the expiration of the three-year period, the records must be retained until the completion of the action and resolution of all issues which arise from it or until the end of the regular three-year period, whichever is later.

7. CONFLICT OF INTEREST

A. Existing law prohibits any grantee, subgrantee, partner or like party who participated on the Organized Retail Theft Grant Program Scoring Panel from receiving funds awarded under the Organized Retail Theft Grant Program RFP. Applicants who are awarded grants under this RFP are responsible for reviewing the Organized Retail Theft Grant Program Scoring Panel roster (*Appendix A*) and ensuring that no grant dollars are passed through to any entity represented by the members of the Organized Retail Theft Grant Program Scoring Panel.

B. In cases of an actual conflict of interest with a Scoring Panel member, the Board may revoke the grant award and legal consequences could exist for the parties involved, including, but not limited to, repayment of the grant award.

EXHIBIT B: BUDGET DETAIL AND PAYMENT PROVISIONS

1. INVOICING AND PAYMENT

A. The Grantee shall be paid quarterly in arrears by submitting an invoice (Form 201) to the BSCC that outlines actual expenditures claimed for the invoicing period.

Quarterly Invoicing Periods:	Due no later than:
1. October 1, 2023 to December 31, 2023	February 15, 2024
2. January 1, 2024 to March 31, 2024	May 15, 2024
3. April 1, 2024 to June 30, 2024	August 15, 2024
4. July 1, 2024 to September 30, 2024	November 15, 2024
5. October 1, 2024 to December 31, 2024	February 15, 2025
6. January 1, 2025 to March 31, 2025	May 15, 2025
7. April 1, 2025 to June 30, 2025	August 15, 2025
8. July 1, 2025 to September 30, 2025	November 15, 2025
9. October 1, 2025 to December 31, 2025	February 15, 2026
10. January 1, 2026 to March 31, 2026	May 15, 2026
11. April 1, 2026 to June 30, 2026	August 15, 2026
12. July 1, 2026 to September 30, 2026	November 15, 2026
13. October 1, 2026 to December 31, 2026	February 15, 2027

Final Invoicing Periods*:	Due no later than:
14. January 1, 2027 to March 31, 2027	May 15, 2027
15. April 1, 2027 to June 1, 2027	August 15, 2027

**Note: Project activity period ends December 31, 2026. The period of January 1, 2027, to June 1, 2027, is for completion of Final Local Evaluation Report and financial audit only.*

B. All project expenses must be incurred by the end of the project activity period, December 31, 2026, and included on the final invoice due February 15, 2027. Project expenditures incurred after December 31, 2026 will not be reimbursed.

C. The Final Local Evaluation Report is due to BSCC by June 1, 2027. Expenditures incurred for the completion of the Final Local Evaluation Report during the period of January 1, 2027, to June 1, 2027, must be submitted during the Final Invoicing Periods, with the final invoice due on August 15, 2027. Supporting fiscal documentation will be required for all expenditures claimed on during the Final Invoicing Periods and must be submitted with the final invoice.

D. The Financial Audit Report is due to BSCC by June 1, 2027. Expenditures incurred for the completion of the financial audit during the period of January 1, 2027, to June 1, 2027, must be submitted during the Final Invoicing Periods, with the final invoice due on August 15, 2027. Supporting fiscal documentation will be required for all expenditures claimed during the Final Invoicing Periods and must be submitted with the final invoice.

E. Grantee shall submit an invoice to the BSCC each invoicing period, even if grant funds are not expended or requested during the invoicing period.

F. Upon the BSCC's request, supporting documentation must be submitted for project expenditures. Grantees are required to maintain supporting documentation for all

EXHIBIT B: BUDGET DETAIL AND PAYMENT PROVISIONS

expenditures on the project site for the life of the grant and make it readily available for review during BSCC site visits. See Exhibit A. Scope of Work, Item 6. Project Records.

2. GRANT AMOUNT AND LIMITATION

A. In no event shall the BSCC be obligated to pay any amount in excess of the grant award. Grantee waives any and all claims against the BSCC, and the State of California on account of project costs that may exceed the sum of the grant award.

B. Under no circumstance will a budget item change be authorized that would cause the project to exceed the amount of the grant award identified in this Grant Agreement. In no event shall changes be authorized for the Administrative Salaries and Benefits line item that would result in that item exceeding ten percent (10%) of the grant award.

3. BUDGET CONTINGENCY CLAUSE

A. This grant agreement is valid through Organized Retail Theft funding generated from the General Fund. The Grantee agrees that the BSCC's obligation to pay any sum to the grantee under any provision of this agreement is contingent upon the availability of sufficient funding granted through the passage of Senate Bill 154 (Chapter 43, Statutes of 2022), also known as the California Budget Act of 2022. It is mutually agreed that if the Budget Act of the current year and/or any subsequent years covered under this Grant Agreement does not appropriate sufficient funds for the program, this Grant Agreement shall be of no further force and effect. In this event, the BSCC shall have no liability to pay any funds whatsoever to Grantee or to furnish any other considerations under this Agreement and Grantee shall not be obligated to perform any provisions of this Grant Agreement.

B. If Organized Retail Theft funding is reduced or falls below estimates contained within the Organized Retail Theft Request for Proposals, the BSCC shall have the option to either cancel this Grant Agreement with no liability occurring to the BSCC or offer an amendment to this agreement to the Grantee to reflect a reduced amount.

C. If BSCC cancels the agreement pursuant to Paragraph 3(B) or Grantee does not agree to an amendment in accordance with the option provided by Paragraph 3(B), it is mutually agreed that the Grant Agreement shall have no further force and effect. In this event, the BSCC shall have no liability to pay any funds whatsoever to Grantee or to furnish any other considerations under this Agreement and Grantee shall not be obligated to perform any provisions of this Grant Agreement except that Grantee shall be required to maintain all project records required by Paragraph 6 of Exhibit A for a period of three (3) years following the termination of this agreement.

4. PROJECT COSTS

A. The Grantee agrees to comply with the BSCC Grant Administration Guide requirements as posted on the BSCC website (currently the BSCC Grant Administration Guide July 2020) including any updated version that may be posted during term of the grant

EXHIBIT B: BUDGET DETAIL AND PAYMENT PROVISIONS

agreement. BSCC will notify grantees whenever an updated version is posted. The BSCC Grant Administration Guide is available at:
https://www.bscc.ca.gov/s_correctionsplanningandprograms/

B. The provisions of the BSCC Grant Administration Guide are incorporated by reference into this agreement and Grantee shall be responsible for adhering to the requirements set forth therein. To the extent any of the provisions of the BSCC Grant Administration Guide and this agreement conflict, the language in this agreement shall prevail.

C. Grantee is responsible for ensuring that statements of expenditures submitted to the BSCC claim actual expenditures for eligible project costs.

D. Grantee shall, upon demand, remit to the BSCC any grant funds not expended for eligible project costs or an amount equal to any grant funds expended by the Grantee in violation of the terms, provisions, conditions or commitments of this Grant Agreement.

E. Grant funds must be used to support new program activities or to augment existing funds that expand current program activities. Grant funds shall not replace (supplant) any federal, state and/or local funds that have been appropriated for the same purpose. Violations can result in recoupment of monies provided under this grantor suspension of future program funding through BSCC grants.

5. PROMPT PAYMENT CLAUSE

Payment will be made in accordance with, and within the time specified in, Government Code Chapter 4.5, commencing with Section 927.

6. WITHHOLDING OF GRANT DISBURSEMENTS

A. The BSCC may withhold all or any portion of the grant funds provided by this Grant Agreement in the event the Grantee has materially and substantially breached the terms and conditions of this Grant Agreement.

B. At such time as the balance of state funds allocated to the Grantee reaches five percent (5%), the BSCC may withhold that amount as security, to be released to the Grantee upon compliance with all grant provisions, including:

1) submittal and approval of the final invoice;
2) submittal and approval of the final progress report; and

C. The BSCC will not reimburse Grantee for costs identified as ineligible for grant funding. If grant funds have been provided for costs subsequently deemed ineligible, the BSCC may either withhold an equal amount from future payments to the Grantee or require repayment of an equal amount to the State by the Grantee.

D. In the event that grant funds are withheld from the Grantee, the BSCC's Executive Director or designee shall notify the Grantee of the reasons for withholding and advise the Grantee of the time within which the Grantee may remedy the failure or violation leading to the withholding.

7. EXECUTIVE ORDER N-6-22 – RUSSIA SANCTIONS

EXHIBIT B: BUDGET DETAIL AND PAYMENT PROVISIONS

On March 4, 2022, Governor Gavin Newsom issued Executive Order N-6-22 (the EO) regarding Economic Sanctions against Russia and Russian entities and individuals. "Economic Sanctions" refers to sanctions imposed by the U.S. government in response to Russia's actions in Ukraine, as well as any sanctions imposed under state law. The EO directs state agencies to terminate contracts with, and to refrain from entering any new contracts with, individuals or entities that are determined to be a target of Economic Sanctions. Accordingly, should the State determine Contractor is a target of Economic Sanctions or is conducting prohibited transactions with sanctioned individuals or entities, that shall be grounds for termination of this agreement. The State shall provide Contractor advance written notice of such termination, allowing Contractor at least 30 calendar days to provide a written response. Termination shall be at the sole discretion of the State.

8. PROJECT BUDGET

BSCC Budget Line Item	A. Grant Funds
1. Salaries and Benefits	$1,406,377
2. Services and Supplies	$24,040
3. Professional Services or Public Agency Subcontracts	$1,340,260
4. Non-Governmental Organization (NGO) Subcontracts	$0
5. Data Collection and Evaluation	$382,564
6. Equipment/Fixed Assets	$1,724,789
7. Financial Audit (Up to $25,000)	$25,000
8. Other (Travel, Training, etc.)	$3,130,800
9. Indirect Costs	$0
TOTALS	$8,033,830

EXHIBIT C: GENERAL TERMS AND CONDITIONS (04/2017)

1. **APPROVAL:** This Agreement is of no force or effect until signed by both parties and approved by the Department of General Services, if required. Contractor may not commence performance until such approval has been obtained.

2. **AMENDMENT:** No amendment or variation of the terms of this Agreement shall be valid unless made in writing, signed by the parties and approved as required. No oral understanding or Agreement not incorporated in the Agreement is binding on any of the parties.

3. **ASSIGNMENT:** This Agreement is not assignable by the Contractor, either in whole or in part, without the consent of the State in the form of a formal written amendment.

4. **AUDIT:** Contractor agrees that the awarding department, the Department of General Services, the Bureau of State Audits, or their designated representative shall have the right to review and to copy any records and supporting documentation pertaining to the performance of this Agreement. Contractor agrees to maintain such records for possible audit for a minimum of three (3) years after final payment, unless a longer period of records retention is stipulated. Contractor agrees to allow the auditor(s) access to such records during normal business hours and to allow interviews of any employees who might reasonably have information related to such records. Further, Contractor agrees to include a similar right of the State to audit records and interview staff in any subcontract related to performance of this Agreement. (Gov. Code §8546.7, Pub. Contract Code §10115 et seq., CCR Title 2, Section 1896).

5. **INDEMNIFICATION:** Contractor agrees to indemnify, defend and hold harmless the State, its officers, agents and employees from any and all claims and losses accruing or resulting to any and all contractors, subcontractors, suppliers, laborers, and any other person, firm or corporation furnishing or supplying work services, materials, or supplies in connection with the performance of this Agreement, and from any and all claims and losses accruing or resulting to any person, firm or corporation who may be injured or damaged by Contractor in the performance of this Agreement. This obligation shall survive any termination of this agreement.

6. **DISPUTES:** Contractor shall continue with the responsibilities under this Agreement during any dispute.

7. **TERMINATION FOR CAUSE:** The State may terminate this Agreement and be relieved of any payments should the Contractor fail to perform the requirements of this Agreement at the time and in the manner herein provided. In the event of such termination the State may proceed with the work in any manner deemed proper by the State. All costs to the State shall be deducted from any sum due the Contractor under this Agreement and the balance, if any, shall be paid to the Contractor upon demand.

EXHIBIT C: GENERAL TERMS AND CONDITIONS (04/2017)

8. **INDEPENDENT CONTRACTOR:** Contractor, and the agents and employees of Contractor, in the performance of this Agreement, shall act in an independent capacity and not as officers or employees or agents of the State.

9. **RECYCLING CERTIFICATION:** The Contractor shall certify in writing under penalty of perjury, the minimum, if not exact, percentage of post-consumer material as defined in the Public Contract Code Section 12200, in products, materials, goods, or supplies offered or sold to the State regardless of whether the product meets the requirements of Public Contract Code Section 12209. With respect to printer or duplication cartridges that comply with the requirements of Section 12156(e), the certification required by this subdivision shall specify that the cartridges so comply (Pub. Contract Code §12205).

10. **NON-DISCRIMINATION CLAUSE:** During the performance of this Agreement, Contractor and its subcontractors shall not deny the contract's benefits to any person on the basis of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or military and veteran status, nor shall they discriminate unlawfully against any employee or applicant for employment because of race, religious creed, color, national origin, ancestry, physical disability, mental disability, medical condition, genetic information, marital status, sex, gender, gender identity, gender expression, age, sexual orientation, or military and veteran status. Contractor shall insure that the evaluation and treatment of employees and applicants for employment are free of such discrimination. Contractor and subcontractors shall comply with the provisions of the Fair Employment and Housing Act (Gov. Code §12900 et seq.), the regulations promulgated thereunder (Cal. Code Regs., tit. 2, §11000 et seq.), the provisions of Article 9.5, Chapter 1, Part 1, Division 3, Title 2 of the Government Code (Gov. Code §§11135-11139.5), and the regulations or standards adopted by the awarding state agency to implement such article. Contractor shall permit access by representatives of the Department of Fair Employment and Housing and the awarding state agency upon reasonable notice at any time during the normal business hours, but in no case less than 24 hours' notice, to such of its books, records, accounts, and all other sources of information and its facilities as said Department or Agency shall require to ascertain compliance with this clause. Contractor and its subcontractors shall give written notice of their obligations under this clause to labor organizations with which they have a collective bargaining or other agreement. (See Cal. Code Regs., tit. 2, §11105.)

    Contractor shall include the nondiscrimination and compliance provisions of this clause in all subcontracts to perform work under the Agreement.

11. **CERTIFICATION CLAUSES:** The CONTRACTOR CERTIFICATION CLAUSES contained in the document CCC 04/2017 (https://www.dgs.ca.gov/OLS/Resources/Page-Content/Office-of-Legal-Services-Resources-List-Folder/Standard-Contract-Language) are hereby incorporated by reference and made a part of this Agreement by this reference as if attached hereto.

EXHIBIT C: GENERAL TERMS AND CONDITIONS (04/2017)

12. **TIMELINESS:** Time is of the essence in this Agreement.

13. **COMPENSATION:** The consideration to be paid Contractor, as provided herein, shall be in compensation for all of Contractor's expenses incurred in the performance hereof, including travel, per diem, and taxes, unless otherwise expressly so provided.

14. **GOVERNING LAW:** This contract is governed by and shall be interpreted in accordance with the laws of the State of California.

15. **ANTITRUST CLAIMS:** The Contractor by signing this agreement hereby certifies that if these services or goods are obtained by means of a competitive bid, the Contractor shall comply with the requirements of the Government Codes Sections set out below.

    A. The Government Code Chapter on Antitrust claims contains the following definitions:

        1) "Public purchase" means a purchase by means of competitive bids of goods, services, or materials by the State or any of its political subdivisions or public agencies on whose behalf the Attorney General may bring an action pursuant to subdivision (c) of Section 16750 of the Business and Professions Code.

        2) "Public purchasing body" means the State or the subdivision or agency making a public purchase. Government Code Section 4550.

    B. In submitting a bid to a public purchasing body, the bidder offers and agrees that if the bid is accepted, it will assign to the purchasing body all rights, title, and interest in and to all causes of action it may have under Section 4 of the Clayton Act (15 U.S.C. Sec. 15) or under the Cartwright Act (Chapter 2 (commencing with Section 16700) of Part 2 of Division 7 of the Business and Professions Code), arising from purchases of goods, materials, or services by the bidder for sale to the purchasing body pursuant to the bid. Such assignment shall be made and become effective at the time the purchasing body tenders final payment to the bidder. Government Code Section 4552.

    C. If an awarding body or public purchasing body receives, either through judgment or settlement, a monetary recovery for a cause of action assigned under this chapter, the assignor shall be entitled to receive reimbursement for actual legal costs incurred and may, upon demand, recover from the public body any portion of the recovery, including treble damages, attributable to overcharges that were paid by the assignor but were not paid by the public body as part of the bid price, less the expenses incurred in obtaining that portion of the recovery. Government Code Section 4553.

    D. Upon demand in writing by the assignor, the assignee shall, within one year from such demand, reassign the cause of action assigned under this part if the assignor has been or may have been injured by the violation of law for which the cause of action arose and (a) the assignee has not been injured thereby, or (b) the assignee declines to file a court action for the cause of action. See Government Code Section 4554.

16. **CHILD SUPPORT COMPLIANCE ACT:** For any Agreement in excess of $100,000, the contractor acknowledges in accordance with Public Contract Code 7110, that:

EXHIBIT C: GENERAL TERMS AND CONDITIONS (04/2017)

A. The contractor recognizes the importance of child and family support obligations and shall fully comply with all applicable state and federal laws relating to child and family support enforcement, including, but not limited to, disclosure of information and compliance with earnings assignment orders, as provided in Chapter 8 (commencing with section 5200) of Part 5 of Division 9 of the Family Code; and

B. The contractor, to the best of its knowledge is fully complying with the earnings assignment orders of all employees and is providing the names of all new employees to the New Hire Registry maintained by the California Employment Development Department.

17. **UNENFORCEABLE PROVISION:** In the event that any provision of this Agreement is unenforceable or held to be unenforceable, then the parties agree that all other provisions of this Agreement have force and effect and shall not be affected thereby.

18. **PRIORITY HIRING CONSIDERATIONS:** If this Contract includes services in excess of $200,000, the Contractor shall give priority consideration in filling vacancies in positions funded by the Contract to qualified recipients of aid under Welfare and Institutions Code Section 11200 in accordance with Pub. Contract Code §10353.

19. **SMALL BUSINESS PARTICIPATION AND DVBE PARTICIPATION REPORTING REQUIREMENTS:**

A. If for this Contract Contractor made a commitment to achieve small business participation, then Contractor must within 60 days of receiving final payment under this Contract (or within such other time period as may be specified elsewhere in this Contract) report to the awarding department the actual percentage of small business participation that was achieved. (Gov. Code § 14841.)

B. If for this Contract Contractor made a commitment to achieve disabled veteran business enterprise (DVBE) participation, then Contractor must within 60 days of receiving final payment under this Contract (or within such other time period as may be specified elsewhere in this Contract) certify in a report to the awarding department: (1) the total amount the prime Contractor received under the Contract; (2) the name and address of the DVBE(s) that participated in the performance of the Contract; (3) the amount each DVBE received from the prime Contractor; (4) that all payments under the Contract have been made to the DVBE; and (5) the actual percentage of DVBE participation that was achieved. A person or entity that knowingly provides false information shall be subject to a civil penalty for each violation. (Mil. & Vets. Code § 999.5(d); Govt. Code § 14841.)

20. **LOSS LEADER:** If this contract involves the furnishing of equipment, materials, or supplies then the following statement is incorporated: It is unlawful for any person engaged in business within this state to sell or use any article or product as a “loss leader” as defined in Section 17030 of the Business and Professions Code. (PCC 10344(e).)

EXHIBIT D: SPECIAL TERMS AND CONDITIONS

1. GRANTEE'S GENERAL RESPONSIBILITY

A. Grantee agrees to comply with all terms and conditions of this Grant Agreement. Review and approval by the BSCC is solely for the purpose of proper administration of grant funds, and shall not be deemed to relieve or restrict the Grantee's responsibility.

B. Grantee is responsible for the performance of all project activities identified in Attachment 1: Organized Retail Theft Grant Program Request for Proposals (incorporated by reference) and Attachment 2: Organized Retail Theft Grant Program Grant Proposal.

C. Grantee shall immediately advise the BSCC of any significant problems or changes that arise during the course of the project.

2. GRANTEE ASSURANCES AND COMMITMENTS

A. Compliance with Laws and Regulations

This Grant Agreement is governed by and shall be interpreted in accordance with the laws of the State of California. Grantee shall at all times comply with all applicable State laws, rules and regulations, and all applicable local ordinances.

B. Fulfillment of Assurances and Declarations

Grantee shall fulfill all assurances, declarations, representations, and statements made by the Grantee in Attachment 1: Organized Retail Theft Grant Program Request for Proposals (incorporated by reference) and Attachment 2: Organized Retail Theft Grant Program Grant Proposal, documents, amendments, approved modifications, and communications filed in support of its request for grant funds.

C. Permits and Licenses

Grantee agrees to procure all permits and licenses necessary to complete the project, pay all charges and fees, and give all notices necessary or incidental to the due and lawful proceeding of the project work.

3. POTENTIAL SUBCONTRACTORS

A. In accordance with the provisions of this Grant Agreement, the Grantee may subcontract for services needed to implement and/or support program activities. Grantee agrees that in the event of any inconsistency between this Grant Agreement and Grantee's agreement with a subcontractor, the language of this Grant Agreement will prevail.

B. Nothing contained in this Grant Agreement or otherwise, shall create any contractual relation between the BSCC and any subcontractors, and no subcontract shall relieve the Grantee of his responsibilities and obligations hereunder. The Grantee agrees to be as fully responsible to the BSCC for the acts and omissions of its subcontractors and of persons either directly or indirectly employed by any of them as it is for the acts and omissions of persons directly employed by the Grantee. The Grantee's obligation to pay its subcontractors is an independent obligation from the BSCC's obligation to make payments to the Grantee. As a result, the BSCC shall have no obligation to pay or to enforce the payment of any moneys to any subcontractor.

EXHIBIT D: SPECIAL TERMS AND CONDITIONS

C. Grantee shall ensure that all subcontractors comply with the eligibility requirements stated in the ARG Rehabilitation of Existing Property or Building Project RFP and described in Appendix B.

D. Grantee assures that for any subcontract awarded by the Grantee, such insurance and fidelity bonds, as is customary and appropriate, will be obtained.

E. Grantee agrees to place appropriate language in all subcontracts for work on the project requiring the Grantee's subcontractors to:

1) Books and Records

Maintain adequate fiscal and project books, records, documents, and other evidence pertinent to the subcontractor's work on the project in accordance with generally accepted accounting principles. Adequate supporting documentation shall be maintained in such detail so as to permit tracing transactions from the invoices, to the accounting records, to the supporting documentation. These records shall be maintained for a minimum of three (3) years after the acceptance of the final grant project audit under the Grant Agreement, and shall be subject to examination and/or audit by the BSCC or designees, state government auditors or designees, or by federal government auditors or designees.

2) Access to Books and Records

Make such books, records, supporting documentations, and other evidence available to the BSCC or designee, the State Controller's Office, the Department of General Services, the Department of Finance, California State Auditor, and their designated representatives during the course of the project and for a minimum of three (3) years after acceptance of the final grant project audit. The Subcontractor shall provide suitable facilities for access, monitoring, inspection, and copying of books and records related to the grant-funded project.

4. PROJECT ACCESS

Grantee shall ensure that the BSCC, or any authorized representative, will have suitable access to project activities, sites, staff and documents at all reasonable times during the grant period including those maintained by subcontractors. Access to program records will be made available by both the grantee and the subcontractors for a period of three (3) years following the end of the grant of the project.

5. ACCOUNTING AND AUDIT REQUIREMENTS

A. Grantee agrees that accounting procedures for grant funds received pursuant to this Grant Agreement shall be in accordance with generally accepted government accounting principles and practices, and adequate supporting documentation shall be maintained in such detail as to provide an audit trail. Supporting documentation shall permit the tracing of transactions from such documents to relevant accounting records, financial reports and invoices.

EXHIBIT D: SPECIAL TERMS AND CONDITIONS

B. The BSCC reserves the right to call for a program or financial audit at any time between the execution of this Grant Agreement and three years following the end of the grant period. At any time, the BSCC may disallow all or part of the cost of the activity or action determined to not be in compliance with the terms and conditions of this Grant Agreement or take other remedies legally available.

6. DEBARMENT, FRAUD, THEFT OR EMBEZZLEMENT

It is the policy of the BSCC to protect grant funds from unreasonable risks of fraudulent, criminal, or other improper use. As such, the Board will not enter into contracts or provide reimbursement to grantees that have been:

1. debarred by any federal, state, or local government entities during the period of debarment; or
2. convicted of fraud, theft, or embezzlement of federal, state, or local government grant funds for a period of three years following conviction.

Furthermore, the BSCC requires grant recipients to provide an assurance that there has been no applicable debarment, disqualification, suspension, or removal from a federal, state or local grant program on the part of the grantee at the time of application and that the grantee will immediately notify the BSCC should such debarment or conviction occur during the term of the Grant contract.

BSCC also requires that all grant recipients include, as a condition of award to a subgrantee or subcontractor, a requirement that the subgrantee or subcontractor will provide the same assurances to the grant recipient. If a grant recipient wishes to consider a subgrantee or subcontractor that has been debarred or convicted, the grant recipient must submit a written request for exception to the BSCC along with supporting documentation.

All Grantees must have on file with the BSCC a completed and signed Certification of Compliance with BSCC Policies on Debarment, Fraud, Theft and Embezzlement (Required as Appendix E of the original Proposal Package).

7. MODIFICATIONS

No change or modification in the project will be permitted without prior written approval from the BSCC. Changes may include modification to project scope, changes to performance measures, compliance with collection of data elements, and other significant changes in the budget or program components contained in the Attachment 1: Organized Retail Theft Grant Program Request for Proposals and Attachment 2: Organized Retail Theft Grant Program Grant Proposal. Changes shall not be implemented by the project until authorized by the BSCC.

8. TERMINATION

A. This Grant Agreement may be terminated by the BSCC at any time after grant award and prior to completion of project upon action or inaction by the Grantee that constitutes a

EXHIBIT D: SPECIAL TERMS AND CONDITIONS

material and substantial breach of this Grant Agreement. Such action or inaction includes but is not limited to:

1) substantial alteration of the scope of the grant project without prior written approval of the BSCC;
2) refusal or inability to complete the grant project in a manner consistent with Attachment 1: Organized Retail Theft Grant Program Request for Proposals and Attachment 2: Organized Retail Theft Grant Program Grant Proposal, or approved modifications;
3) failure to meet prescribed assurances, commitments, recording, accounting, auditing, and reporting requirements of the Grant Agreement.

B. Prior to terminating the Grant Agreement under this provision, the BSCC shall provide the Grantee at least 30 calendar days written notice stating the reasons for termination and effective date thereof. The Grantee may appeal the termination decision in accordance with the instructions listed in Exhibit D: Special Terms and Conditions, Number 9. Settlement of Disputes.

9. SETTLEMENT OF DISPUTES

A. The parties shall deal in good faith and attempt to resolve potential disputes informally. If the dispute persists, the Grantee shall submit to the BSCC Corrections Planning and Grant Programs Division Deputy Director a written demand for a final decision regarding the disposition of any dispute between the parties arising under, related to, or involving this Grant Agreement. Grantee's written demand shall be fully supported by factual information. The BSCC Corrections Planning and Grant Programs Division Deputy Director shall have 30 days after receipt of Grantee's written demand invoking this Section "Disputes" to render a written decision. If a written decision is not rendered within 30 days after receipt of the Grantee's demand, it shall be deemed a decision adverse to the Grantee's contention. If the Grantee is not satisfied with the decision of the BSCC Corrections Planning and Grant Programs Division Deputy Director, the Grantee may appeal the decision, in writing, within 15 days of its issuance (or the expiration of the 30-day period in the event no decision is rendered), to the BSCC Executive Director, who shall have 45 days to render a final decision. If the Grantee does not appeal the decision of the BSCC Corrections Planning and Grant Programs Division Deputy Director, the decision shall be conclusive and binding regarding the dispute and the Contractor shall be barred from commencing an action in court, or with the Victims Compensation Government Claims Board, for failure to exhaust Grantee's administrative remedies.

B. Pending the final resolution of any dispute arising under, related to or involving this Grant Agreement, Grantee agrees to diligently proceed with the performance of this Grant Agreement, including the providing of services in accordance with the Grant Agreement. Grantee's failure to diligently proceed in accordance with the State's instructions regarding this Grant Agreement shall be considered a material breach of this Grant Agreement.

EXHIBIT D: SPECIAL TERMS AND CONDITIONS

C. Any final decision of the State shall be expressly identified as such, shall be in writing, and shall be signed by the Executive Director, if an appeal was made. If the Executive Director fails to render a final decision within 45 days after receipt of the Grantee's appeal for a final decision, it shall be deemed a final decision adverse to the Grantee's contentions. The State's final decision shall be conclusive and binding regarding the dispute unless the Grantee commences an action in a court of competent jurisdiction to contest such decision within 90 days following the date of the final decision or one (1) year following the accrual of the cause of action, whichever is later.

D. The dates of decision and appeal in this section may be modified by mutual consent, as applicable, excepting the time to commence an action in a court of competent jurisdiction.

10. UNION ACTIVITIES

For all agreements, except fixed price contracts of $50,000 or less, the Grantee acknowledges that applicability of Government Code §§16654 through 16649 to this Grant Agreement and agrees to the following:

A. No State funds received under the Grant Agreement will be used to assist, promote or deter union organizing.

B. Grantee will not, for any business conducted under the Grant Agreement, use any State property to hold meetings with employees or supervisors, if the purpose of such meetings is to assist, promote or deter union organizing, unless the State property is equally available to the general public for holding meetings.

C. If Grantee incurs costs or makes expenditures to assist, promote or deter union organizing, Grantee will maintain records sufficient to show that no reimbursement from State funds has been sought for these costs, and that Grantee shall provide those records to the Attorney General upon request.

11. WAIVER

The parties hereto may waive any of their rights under this Grant Agreement unless such waiver is contrary to law, provided that any such waiver shall be in writing and signed by the party making such waiver.

Title

Daly City Police Department

07/06/2023

by **Ignacio Reyes** in **Organized Retail Theft Prevention Grant Program**

ireyes@dalycity.org

id. 41327693

Original Submission

07/06/2023

	The Organized Retail Theft (ORT) Prevention Grant Program Application is divided into five (5) sections as identified below: Background Information Contact Information Program Information Proposal Narrative and Budget Mandatory Attachments Each section has a series of questions requiring a response. Applicants will be prompted to provide written text, select options from a drop down menu, select options from a multiple choice menu, or upload attachments. Questions with a red asterisk require responses. Applicants will not be able to submit the application until all questions with a red asterisk have been completed. Applicants may reference the ORT Prevention Grant Program Proposal Instruction Packet for background information, key dates, rating factors, and other important information to aid in the completion of the ORT Prevention Grant Program Application. The ORT Prevention Grant Proposal Instruction Packet is available on the Board of State and Community Corrections (BSCC) website. NOTE: Applicants may start and stop their application but must select "Save Draft" at the bottom of the application before existing.
SECTION I - BACKGROUND INFORMATION	**This section requests information about the applicant's name, location, mailing address, and tax identification number.**
Name of Applicant (i.e., Police Department, Sheriff's Department, or Probation Department)	**Daly City Police Department**
Multi-Agency Partnerships Information (if applicable)	**Applicants may apply for funding as part of a multi-agency partnership (two [2] or more agencies). The agencies and jurisdictions comprising the collaborative application are not required to be contiguous. One (1) Lead Public Agency must be identified on behalf of the partnership.**
Multi-Agency Partnerships	**Yes: This is a Multi-Agency Partnership Application**

Identification of Multi-Agency Partners	**San Bruno Police Department** **San Mateo Police Department**
Lead Public Agency Information	**All applicants are required to designate a Lead Public Agency (LPA) to serve as the coordinator for all grant activities. The LPA is a governmental agency with local authority within the applicant's city or county. The applicant may choose to fill the role of LPA itself or it may designate a department, agency, or office under its jurisdiction to serve as the LPA. The role of the LPA is to coordinate with other local government agency partners and non-governmental organizations to ensure successful implementation of the grant program. The LPA is responsible for data collection and management, invoices, meeting coordination (virtual and/or in-person), and will serve as the primary point of contact with the BSCC.**
Lead Public Agency	**Daly City Police Department**
Applicant's Physical Address	**333 90th Street** **Daly City** **CA** **94015** **US**
Applicant's Mailing Address (if different than the physical address)	n/a
Mailing Address for Payment	**333 90th St.** **Daly City** **CA** **94015** **US**
Tax Identification Number	**94-6000318**
SECTION II - CONTACT INFORMATION	**This section requests contact information for the individuals identified as the Project Director, Financial Officer, Day-to-Day Project Contact, Day-to-Day Fiscal Contact, and the Authorized Signature.**
Project Director	**Ignacio** **Reyes**
Project Director's Title with Agency/Department/Organization	**Lieutenant #107**
Project Director's Physical Address	**333 90th Street** **Daly City** **CA** **94015** **US**

Project Director's Email Address	**ireyes@dalycity.org**
Project Director's Phone Number	**+16509918274**
Financial Officer	**Judy** **Huey**
Financial Officer's Title with Agency/Department/Organization	**Police Management Analyst**
Financial Officer's Physical Address	**333 90th Street** **Daly City** **CA** **94015** **US**
Financial Officer's Email Address	**jhuey@dalycity.org**
Financial Officer's Phone Number	**+16507468373**
Day-To-Day Program Contact	**Ignacio** **Reyes**
Day-To-Day Program Contact's Title	**Support Services Bureau**
Day-To-Day Program Contact's Physical Address	**333 90th Street** **Daly City** **CA** **94015** **US**
Day-To-Day Program Contact's Email Address	**ireyes@dalycity.org**
Day-To-Day Program Contact's Phone Number	**+16504839509**
Day-To-Day Fiscal Contact	**Judy** **Huey**
Day-To-Day Fiscal Contact's Title	**Police Management Analyst**

Day-To-Day Fiscal Contact's Physical Address	**333 90th Street** **Daly City** **CA** **94015** **US**
Day-To-Day Fiscal Contact's Email Address	**jhuey@dalycity.org**
Day-To-Day Fiscal Contact's Phone Number	**+16507468373**
Name of Authorized Officer	**Cameron** **Christensen**
Authorized Officer's Title	**Acting Chief of Police**
Authorized Officer's Physical Address	**333 90th Street** **Daly City** **CA** **94015** **US**
Authorized Officer's Email Address	**cchristensen@dalycity.org**
Authorized Officer's Phone Number	**+16509918115**
Authorized Officer Assurances	**checked**
SECTION III - PROGRAM INFORAMTION	**This section requests a Project Title, Proposal Summary description, Program Purpose Area(s) selection, and Scope Funding Category selection.**
Project Title	**Daly City, San Bruno, San Mateo Police Departments Coordinating to Address ORT, MVT, MVAT**
Proposal Summary	**Daly City Police Department is partnering with San Bruno and San Mateo Police Departments. Together, the partner agencies will launch a coordinated and strategic effort to address and prevent retail and vehicle/accessory theft in the region. Community Service Officers, an Organized Retail Theft Task Force, DCPD MVT/MVAT Operations, Community Awareness Campaigns, and technologies such as Starchase, C3 investigative tools, and Automatic License Plate Readers will enhance efforts to protect and serve. The initiative will reduce ORT, MVT, and MVAT in partnering jurisdictions, improving the safety and security of residents and retailers alike.**

PROGRAM PURPOSE AREAS	**Applicants must propose activities, strategies, or programs that address the Program Purpose Areas (PPAs) as defined on pages 5 - 8 in the ORT Prevention Grant Proposal Instruction Packet. A minimum of one (1) PPA must be selected; applicants are not required to address all three (3) PPAs. All proposed activities, strategies, or programs must have a link to the ORT Prevention Grant Program as described in the authorizing legislation and the ORT Prevention Grant Proposal Instruction Packet.**
Program Purpose Areas (PPAs):	**PPA 1: Organized Retail Theft** **PPA 2: Motor Vehicle or Motor Vehicle Accessory Theft**
Funding Category Information	**Applicants may apply for funding in a Medium Scope OR Large Scope Category. The maximum an applicant may apply for is up to $6,125,000 in the Medium Scope category OR up to $15,650,000 in the Large Scope category. Applicants may apply for any dollar amount up to and including the maximum grant amount identified in each category. Multi-agency partnerships (determined as Medium Scope OR Large Scope) may apply for up to the maximum grant award in that category, multiplied by the number of partnering eligible applicants. For Example: Four (4) eligible applicants in the Medium Scope category may submit one (1) application for up to $24,500,000 o $6,125,000 (Medium Scope Max) x 4 (# of Agencies) = $24,500,000 Two (2) eligible applicants in the Large Scope category may submit one (1) application for up to $31,300,000 o $15,650,000 (Large Scope Max x 2 (# of Agencies) = $31,300,000 Please reference pages 10-12 in the ORT Prevention Grant Proposal Instruction Packet for additional information.**
Funding Category	**Medium Scope (Up to $6,125,000)**
SECTION IV - PROPOSAL NARRATIVE AND BUDGET	**This section requests responses to the Rating Factors identified in the the ORT Prevention Grant Program Application Instruction Packet.**

Proposal Narrative Instructions	**The Proposal Narrative must address the Project Need, Project Description, Project Organizational Capacity and Coordination, and Project Evaluation and Monitoring Rating Factors as described in the ORT Prevention Grant Instruction Packet (refer to pages 20-24). A separate narrative response is required for each Rating Factor as described below: The Project Need narrative may not may not exceed 6,711 total characters (includes punctuation, numbers, spacing and any text). In Microsoft Word, this is approximately three (3) pages in Arial 12-point font with one-inch margins on all four (4) sides and at 1.5-line spacing. The Project Description narrative may not may not exceed 11,185 total characters (includes punctuation, numbers, spacing and any text). In Microsoft Word, this is approximately five (5) pages in Arial 12-point font with one-inch margins on all four (4) sides and at 1.5-line spacing. The Project Organizational Capacity and Coordination narrative may not may not exceed 4,474 total characters (includes punctuation, numbers, spacing and any text). In Microsoft Word, this is approximately two (2) pages in Arial 12-point font with one-inch margins on all four (4) sides and at 1.5-line spacing. The Project Evaluation and Monitoring narrative may not may not exceed 4,474 total characters (includes punctuation, numbers, spacing and any text). In Microsoft Word, this is approximately two (2) pages in Arial 12-point font with one-inch margins on all four (4) sides and at 1.5-line spacing. A character counter is automatically enabled that shows the number of characters used and the remaining number of characters before the limit for each response is met. If the character limit is exceeded, a red prompt will appear with the message "You have exceeded the character limit". Applicants will be prohibited from submitting the ORT Prevention Grant Program Application until they comply with the character limit requirements. NOTE: It is up to the applicant to determine how to use the total word limit in addressing each section, however as a guide, the percent of total point value for each section is provided in the ORT Prevention Grant Proposal Instruction Packet (refer to page 15).**
Project Need	**Need to be Addressed / Process to Determine Need / Related to Intent of Grant Program: Daly City Police Department conducted a comprehensive Needs Assessment to gather documentation from numerous sources to support internal data that identified intensifying challenges related to Organized Retail Theft (ORT), Motor Vehicle Theft (MVT), and Motor Vehicle Accessory Theft (MVAT) in the jurisdiction. Data was gathered from the Daly City Police Department, local retailers (Macy's, Old Navy, Victoria's Secret, Dick's Sporting Goods, Westlake Shopping Center, and Serramonte Shopping Center. The Needs Assessment process connected the Daly City Police Department to the San Mateo and San Bruno Police Departments (also referred to as partner agencies) to review each respective jurisdiction's statistics. It was quickly determined that common challenges can best be addressed through partnership. Together, the three police departments are coordinating to jointly apply for CORTP Grant Program funds. The project design aligns directly with the funding intent to prevent, respond and investigate**

ORT, MVT, and MVAT.

ORT continues to skyrocket, threatening employee and customer safety and causing retailers to report massive losses. Recently, over $1 million was stolen in an organized retail smash-and-grab theft at Serramonte Shopping Center, resulting in a high-speed chase and crash and a lengthy investigation to apprehend additional suspects. Despite efforts, only $120K of stolen merchandise was recovered. Recent headlines include: "3 suspects steal $2k worth of fragrances from Daly City Macy's: police" (December 22, 2022) and "Teen arrested on suspicion of stealing $16,000 in merchandise from Target" (December 27, 2021).

In nearby San Francisco, rising ORT led to the closures of numerous retailers, pushing crime rings to neighboring cities. ORT has become so pervasive that retailers are now locking laundry detergent, shampoos, and even Windex behind plexiglass doors that require employee assistance to open.

Vehicle theft is also a growing challenge. Partner agencies regularly issue Public Service Announcements across social media outlets encouraging drivers to protect their vehicles from theft through various methods. Vehicles are regularly relieved of parts and accessories (catalytic converter, rims/wheels, and any handheld technology). Recent headlines include: "$18K worth of goods stolen from Daly City auto repair shop, suspects at large" (May 11, 2023); and "Police Warn San Mateo Residents of Vehicle Theft; Man Charged" (March 9, 2023).

Service Gaps / Location / Accessibility: The County of San Mateo has approximately 729,000 individuals.

The partner agencies are in the Bay Area, on the Peninsula, between San Francisco County and Santa Clara County. As stated above, San Francisco has been experiencing high ORT, MVT, and MVAT and as their retail stores close, more crime is coming, or expected to come to the partner agency jurisdictions. The growing number of theft incidents make security positions difficult to fill and maintain, as the personal risk is simply deemed too great for compensation. The cities of Daly City, San Bruno, and San Mateo have the four largest shopping malls in San Mateo County, each with over 100 stores, businesses, and restaurants, creating ample opportunities for organized theft operations. There is a desperate need for public-facing substations with dedicated police presence in large retail centers.

Vehicle theft, and vehicle accessory theft, are challenges both for unattended personal vehicles parked in lots, on streets, and for vehicles and components stored at auto retailers. MVT and MVAT goods disappear quickly into recycling facilities to be broken down for the precious metals inside catalytic converters.

Across Daly City, San Bruno, and San Mateo jurisdictions, there is a

need for fixed automated license plate readers (ALPRs) and vehicle-mounted camera systems to support the response to retail theft and motor vehicle/accessory theft. Community Service Officers can be crucial for ORT, MVT, and MVAT crime reporting and documentation; however, they are not consistently supported by existing budgets at this time. Focused on ORT, MVT, and MVAT, additional Community Service Officers – and the equipment necessary to support their efforts – are needed by the Daly City and San Mateo Police Departments. Data sharing is another critical gap, and a consistent data aggregation platform is needed to share data within Daly City, San Bruno, and San Mateo Police Departments and with neighboring agencies and counties to coordinate, investigate, and solve crimes faster.

One of the largest gaps in services at this time is appropriate staffing levels. The partner agencies desperately need funding to support overtime to enable targeted ORT, MVT, and MVAT prevention efforts and Community Service Officers assigned to Patrol to create capacity for documentation of ORT, MVT, and MVAT-related cases. At this time, when there is no known suspect or investigative leads, reports are submitted through an online system and rarely solved. Overburdened partners also lack the capacity to offer education and liaison functions for local retailers to promote best practices to identify, reduce, and report ORT crimes.

Data Describing Theft: Rising theft rates are plaguing retailers across Daly City, San Bruno, and San Mateo. In 2022, the local Macy's documented a loss of $2 million, placing the Daly City location in their highest theft "Tier A" category (interview with Loss Prevention Manager). Dick's Sporting Goods in Daly City has experienced a 290% increase in theft since 2020. Daly City and San Mateo's Home Depots have lost over $19M to theft since 2020. Victoria's Secret in San Mateo documented a 400% increase in loss between 2020 and 2022. A retailer in San Bruno reported $2.6M in loss in 2023, a 52% increase since 2019. San Mateo's Sephora has lost 1.4M this year so far, which is a 121% increase since 2021. Overall, there have been 16,703 documented theft cases in the partner agency jurisdictions since 2018, with over $40M of stolen merchandise (based on available retailer data). Based on all collected data from retailers in the partner agency jurisdictions, there was a 34% increase in loss in 2022 when compared to 2021. Retailer Letters of Commitment appended.

Vehicle theft is also increasing exponentially, with 4,866 MVT-reported cases and 1,525 documented cases of MVAT since 2018 for all partners. Despite etching technology to facilitate component identification and a "bait car" to address these issues, residents frequently find their vehicles relieved of parts and accessories.

Project Description

1. Addressing Needs
Activities / Services / Interventions, length and duration:
****Together, the Daly City, San Bruno, and San Mateo Police Departments (partner agencies) will launch a coordinated and strategic effort to address and prevent retail and vehicle/accessory**

theft in the community. Key activities will include:
****Organized Retail Theft Task Force (ORTTF) Days: Held over eight days each quarter, from December 2023 through December 2026, grant funds will support overtime expenses for a Lieutenant, a Sergeant, and Officers to conduct Zero Theft Tolerance days across the partnering agencies jurisdictions. The ORTTF deployments will rotate among various retail locations, within partner agency jurisdictions.**
****Daly City PD MVT/MVAT Operations: Once per quarter, Daly City PD would deploy their existing bait car, outfitted with tracking devices on key accessories, throughout hotspot locations within the city in an attempt to combat MVT and MVAT. Tracking devices allow officers to safely track and apprehend suspects after committing an MVT or MVAT. Up to ten additional catalytic converters will be purchased to be used in the bait car in the event they're damaged beyond repair for use in future operations.**
****Community Service Officers: An additional CSO will be added to the San Mateo and Daly City Police Departments from January 2024 through December 2026. Fully equipped electric vehicles will be purchased for Daly City and San Mateo's CSOs, supporting prevention (through retailer training), documentation, and investigation of ORT, MVT, and MVAT-related cases.**
****Community Awareness: Advertising campaigns, including mailers, will be conducted twice a year from December 2023 through December 2026 to ensure the community is aware that the partnering agencies are cracking down on retail and vehicle/accessory theft and to better arm citizens against becoming victims. A message board trailer with ALPR cameras will also be purchased, enabling prevention warnings in hotspots, serving as a visible deterrent, and collecting ORT, MVT, and MVAT data.**
****Investigative Tools: The partnering agencies will purchase and utilize a new data aggregation tool to enhance investigations and reporting (C3.ai Law Enforcement Application) hosted by Amazon Web Services. This tool allows agencies to share data amongst each other in the county, enhancing and accelerating investigations faster than ever before since all data will be combined into one central location. Using this tool, law enforcement personnel would be better equipped to prevent (through advanced analytics and reporting) and investigate (through data sharing and timesaving) ORT, MVT, and MVAT, enhancing our communities' safety and security. Grant funds will support the development, onboarding, and enhancements of this technology from January 2024 through December 2026.**
****Automatic License Plate Readers: New ALPR cameras will be fixed throughout the partner agencies' jurisdictions to assist with preventing and investigating crimes related to ORT criminal networks, MVT, and MVAT.**
****Surveillance Pole Camera Trailers: To be deployed to hot-spot locations for ORT, MVT, and MVAT, serving as a visual deterrent and collecting evidence when crimes occur. They will benefit the community long beyond the funding period.**
****Starchase: Starchase systems will be purchased and utilized to locate and apprehend fleeing motor vehicles. The discharged projectile will broadcast relevant GPS information of a fleeing suspect**

vehicle without having to engage in a pursuit that puts public safety at risk. This will serve as an investigative tool so police can follow up and hold ORT, MVT, and MVAT suspects accountable while minimizing risk to the community.
****Substation at Hillsdale Mall: A public-facing substation will be established at Hillsdale Mall, allowing officers and/or a CSO to be onsite, facilitating walk-ins for advice, counter reports, and fast response when crimes occur. Grant funds will cover upgrading the internet connection from the Substation to the San Mateo Police Department. Also, minor upgrades to paint, flooring, and office furniture to support this important service. This resource will benefit the community beyond the funding period.**

Target Area / Population:
Grant funds will serve Daly City, San Bruno, and San Mateo Police Departments, home to approximately 247,000 residents. All three Police Departments are partnering on this initiative to address shared challenges related to ORT, MVT, and MVAT. As described, the formal Needs Assessment process connected the Daly City Police Department to San Mateo and San Bruno Police Departments to review their respective jurisdiction's statistics and common challenges promoted partnership. Together, the three police departments protecting and serving their respective city jurisdictions are coordinating to jointly apply for California Organized Retail Theft Prevention Grant Program funds. Rising rates of ORT, MVT, and MVAT are detracting from the safety and overall quality of life in Daly City, San Bruno, and San Mateo as organized theft circuits expand beyond the City and County of San Francisco to our neighboring county. Efforts must be strategically coordinated.

Addressing Project Need and Intent of Grant Program:
The following grant-funded activities will directly impact rising ORT, MVT, and MVAT rates:
**** Organized Retail Theft Task Force**
****Community Service Officers**
****Substation at Hillsdale Mall**
****Community Awareness**
****Investigative Tools**
****Automatic License Plate Readers**
****Surveillance Pole Camera Trailers**
****Starchase**
****Daly City PD MVT/MVAT Operations**
(Please cross-reference the detailed descriptions above due to space constraints.)

Coordination and Collaboration:
As described, Daly City PD is the lead applicant, in coordination with San Mateo PD and San Bruno PD. C3 technology purchased with grant funds will enhance and expand partnership capabilities, facilitating data sharing and real-time communication to identify suspects across jurisdictions and prevent further crime. Signed Letters of Commitment have been secured from San Mateo Police

Department and San Bruno Police Department. A joint Letter of Impact with retailers and the District Attorney's Office is also appended.

2. Goals, Objectives, and Impact:
The overall goal of this initiative is to reduce the occurrences of ORT, MVT, and MVAT in the partner agencies jurisdictions.

Objective 1: Reported losses from retail theft will reduce when comparing 2022-2023 data to 2025-2026 data for major retailers in Daly City, San Bruno, and San Mateo.
***This relates directly to the need to reduce retail theft in the region.**

Objective 2: Vehicle theft and vehicle accessory theft rates will reduce when comparing 2022-2023 data to 2025-2026 data for Daly City, San Bruno, and San Mateo.
***This relates directly to the need to reduce vehicle/vehicle accessory rates in the region.**

Work Plan: The completed Project Work Plan is included as Appendix B and identifies top goals and objectives, as well as related activities, measures, and timelines.

3. Rationale:
Daly City PD and partners San Mateo PD and San Bruno PD will leverage evidence-based strategies to address rising retail and vehicle/accessory theft rates.

Data Collection: Overtime hours and increased staffing, vehicle cameras, automatic license plate readers, and C3 investigative tools will allow the partnering PDs to compile incident-based crime data, as recommended in the Evidence-Based Policing in 45 Small Bytes released by OJP in May 2020. Details crucial for spotting patterns and choosing the best responses are easy to identify in incident-based formats but get lost in aggregate form.

Organized Retail Theft Task Force: Portland Police Department (Oregon) conducted similar activities in early 2023 and reported tremendous success. Their goal was to curb shoplifting and car thefts. Their February 2023 effort led to 40 arrests and 60 warrants serviced, 32 felony charges, 28 misdemeanor charges, and over $2,000 of stolen merchandise recovered. The December 2022 effort resulted in 64 arrests, 70 warrants serviced, 10 recovered stolen vehicles, three firearms confiscated, and $9,000 in stolen merchandise recovered. Portland Police report that their retail theft missions send a message that they are cracking down on all crime, from shoplifting to stealing cars.

4. Existing Policies to Govern Use of Surveillance Technology:
All partnering Police Departments have policies and procedures in place to govern the use of any agency specific surveillance technology. All partnering Police Departments comply with applicable privacy laws and regulations and secure any data that is collected or

stored to protect individual privacies.

5. Existing Policies to Limit Racial Bias:
All partnering Police Departments maintain policies to ensure that policing is fair and objective. Training supports these policies, including Peace Officer Standards Training (POST)-approved training on the subject of bias-based policing. Officers are encouraged to familiarize themselves with and consider racial and cultural differences among members of the community and approved refresher courses are taken at least every five years. Policies support the commitment to providing law enforcement services to the community with due regard for the racial, cultural, or other differences of those served. All partnering Police Departments maintain the policy to provide law enforcement services and to enforce the law equally, fairly, objectively, and without discrimination toward any individual or group. Bias-based policing is strictly prohibited.

Project Organizational Capacity and Coordination

1. Applicant's Ability to Administer the Project:

Lead Applicant Daly City PD is led by one Chief and two supporting Captains, heading the Field Operations Bureau and the Support Services Bureau. Both Bureaus have Administration Services Divisions staffed with the personnel necessary to lead multi-faceted grant initiatives. All grant funding will be kept in a separate account, and double confirmation will be required prior to fund release, ensuring alignment with the stated grant intent. Daly City PD works closely with San Mateo PD and San Bruno PD and will ensure formal monthly communication to coordinate activities and oversee budgetary matters effectively. Daly City PD is experienced in leading efforts to enhance the safety and security of the community and has led and managed multiple Office of Traffic Safety grants to support DUI checkpoints.

Staffing Required / Qualifications:
Two full-time CSOs will be hired to support project activities (one at San Mateo and one at Daly City). All CSOs will meet the required qualifications to serve as Community Service Officers and handle ORT, MVT, and MVAT-related cases.

A part-time Management Analyst (referred to as Grant Administrator hereinafter) will be hired to manage and oversee grant activities and will be employed by the lead applicant Daly City PD. The part-time Grant Administrator will have experience managing grants.

Existing Staff Resources:
Daly City PD and San Mateo PD will dedicate ten hours each month from an existing Administrative Assistant to data compilation through C3. Existing payroll services will also be dedicated to the initiative, ensuring all project-funded staff are compensated.

Project funding will cover overtime expenses for teams of Sworn Officers to form an Organized Retail Theft Task Force to stop retail

theft. The Daly City MVT/MVAT Operations and deployments will also be supported by overtime each quarter. Teams will be comprised of a Lieutenant, a Sergeant, and Officers who will be recruited for these overtime opportunities from existing Sworn Officers.

Project Management and Oversight:
The project will be led by Project Director Ignacio Reyes, Lieutenant of the Daly City Police Department. Lieutenant Reyes is a practiced leader with the skills and qualifications necessary to lead project implementation successfully. He is the best possible candidate for this position.

Project Director Reyes will be supported by the part-time Grant Administrator.

2. Partners:
Daly City PD will coordinate with San Mateo PD and San Bruno PD. The ORTTF will rotate focus among partner jurisdictions on a non-predictable schedule based on data analysis and need. All three PDs have included budgetary items needed to support enhanced efforts focused on ORT, MVT, and MVAT. Activities will be undertaken in coordination and further supported by the C3 technology that will allow all partners to quickly and efficiently share data to identify actionable trends. Formal monthly communication will take place throughout the project to facilitate the coordination of activities; however, C3 technology will ensure real-time coordination related to crime-stopping, prevention, and investigation. San Mateo PD will hire one CSO to support project activities. San Bruno PD has the staffing in place and will focus grant funds on needed equipment. All partners will support extensive OT costs with grant funds. Letters of Commitment are attached.

3. Timeline for MOUs:
Letters of Commitment have been secured. MOUs can be drafted and signed immediately upon notification of award. Daly City PD, San Mateo PD, and San Bruno PD will be ready to "hit the ground running" within four weeks of award notification.

4. Management Structure:
Daly City PD is the Lead Applicant. Partners will be asked for input; however, Daly City PD has the final word on decision-making.

5. Sustainability:
Equipment, technology, and supplies are one-tim e purchases that will continue to positively impact the partner agencies' jurisdictions beyond the funding period. Partnering police departments are prepared to absorb the subscription expenses and upkeep necessary to continue efforts beyond the funding period. Enhanced coordination and sharing of resources will allow project efforts to continue.

Project Evaluation and Monitoring

1. Conducting Project Evaluation:

An External Evaluator will be secured, and initial efforts are underway to determine which local firm will best fit project needs. Daly City PD has reached out to two local colleges offering evaluation opportunities. The External Evaluator will collect baseline data at the start and monitor relevant data sets throughout the project period. Reports will be generated quarterly to showcase qualitative and quantitative data capturing movement toward goals and objectives.

2. Process Measures and Outcome Measures:
Quarterly Organized Retail Theft Task Force efforts begin Month 1.
Quarterly Daly City PD MVT/MVAT Operations efforts begin Month 1.
CSOs recruited, hired, and in training by Month 4.
Equipment and technology purchased and deployed by Month 4.
Number of retail theft arrests reviewed monthly.
Retail theft losses quantified quarterly by local retailers.
Value of merchandise recovered reviewed monthly.
Number of MVT and MVAT reports reviewed monthly.
Number of recovered vehicles and accessories reviewed monthly.
Frequency of useful evidence or leads obtained from ALPR, Dash Cameras, Tracking Devices, Starchase equipment reviewed monthly.

3. Monitoring:
The External Evaluator will generate reports quarterly showcasing qualitative and quantitative data that illustrate progress and challenges related to the goal and objective attainment. All three Police Departments will meet to review this data and decide what strategies to pursue if goals and objectives are not on track.

4. Collecting Data:
Baseline data will be utilized from 2022-2023 records. The new enhancements to the C3 system will allow all partners to display relevant data from the shared system, facilitating efforts to track trends and identify actionable patterns. Partners have already agreed to share data in the Letters of Commitment and will include this phrasing in MOUs as well. Data will be collected from receipts, training attendance logs, OT records, number of arrests/citations/vehicles recovered, the value of merchandise recovered, data from local retailers, data from officer reports, and a variety of other sources.

5. Research Design / Methodology:
Process and Outcome evaluation efforts will be conducted, utilizing a continuous improvement performance feedback loop to drive data-driven decision-making that ensures goals and objectives are met on time and within budget. Data reports will be formally reviewed quarterly to inform any needed adjustments to achieve success. Project data will include qualitative and quantitative data sets, monitored by the External Evaluator, and will determine both how the project is progressing and what the project is achieving.

Budget Instructions	**Applicants are required to submit a Proposal Budget and Budget Narrative (Budget Attachment). Upon submission the Budget Attachment will become Section 5: Budget (Budget Tables & Narrative) making up part of the official proposal. The Budget Attachment must be filled out completely and accurately. Applicants are solely responsible for the accuracy and completeness of the information entered in the Proposal Budget and Budget Narrative. The Proposal Budget must cover the entire grant period. For additional guidance related to grant budgets, refer to the BSCC Grant Administration Guide. The Budget Attachment is provided as a stand-alone document on the BSCC website.**

Budget Attachment

Budget_07-06-2023.xlsx

SECTION V - ATTACHMENTS	**This section list the attachments that are required at the time of submission, unless otherwise noted. Project Work Plan (Appendix B) - Mandatory Grantee Assurance for Non-Governmental Organizations (Appendix D) - Mandatory Local Impact Letter(s) (Appendix E) - Mandatory Letter(s) of Commitment (Appendix F) - If Applicable Policies Limiting Racial Bias - Refer to page 9 of the Proposal Instruction Packet - Mandatory Policies on Surveillance Technology - Refer to page 9 of the Proposal Instruction Packet - If Applicable Certification of Compliance with BSCC Policies on Debarment, Fraud, Theft, and Embezzlement (Appendix G) - Mandatory Governing Board Resolution (Appendix H) - Optional**

Project Work Plan (Appendix B)

Project_Work_Plan.docx

Grantee Assurance for Non-Governmental Organizations (Appendix D)

Appendix_D_-_Grantee_Assurance_for_Non-Governmental_Organizations.pdf

Local Impact Letter(s) (Appendix E)

Letter_of_Agreement_-_Local_Impact.pdf

Letter(s) of Commitment, (Appendix F)

Letter_of_Commitment_-_San_Mateo.pdf

Letter_of_Commitment_-_San_Bruno.pdf

Policies Limiting Racial Bias

SMPD_Bias-Based_Policing.pdf

SBPD_-_Bias-Based_Policing.pdf

DCPD_Bias-Based_Policing.pdf

Policies on Surveillance Technology

DCPD_Automated_License_Plate_Readers.pdf

DCPD_DRAFT_GPS_Policy.pdf

DCPD_DRAFT_StarChase_Pursuit_Management_System_Procedure.pdf

SBPD_-_StarChase_Pursuit_Management_System_Procedure.pdf

SBPD_Automated_License_Plate_Readers.pdf

SMPD_Policy_ALPRs.pdf

SMPD_Policy._Public_Safety_Video_Surveillance_System.pdf

SMPD.StarChase_Pursuit_Management_System_Procedure.pdf

Certification of Compliance with BSCC Policies on Debarment, Fraud, Theft, and Embezzlement (Appendix G)

FINAL_Certification-of-Compliance-with-BSCC-Policies-on-Debarment_-Fraud_-Theft_-and-Embezzlement-ORT_002.docx

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OPTIONAL: Governing Board Resolution (Appendix H)	n/a

OPTIONAL: Bibliography	n/a

CONFIDENTIALITY NOTICE:	**All documents submitted as a part of the Organized Retail Theft Prevention Grant Program proposal are public documents and may be subject to a request pursuant to the California Public Records Act. The BSCC cannot ensure the confidentiality of any information submitted in or with this proposal. (Gov. Code, § 6250 et seq.)**

Appendix B: Project Work Plan

Applicants must complete a Project Work Plan. This Project Work Plan identifies measurable goals and objectives, process and outcome measures, activities and services, responsible parties for those activities and services, data sources and estimated timelines. Completed plans should (1) identify the project's top goals and objectives; (2) identify how the goal(s) will be achieved in terms of the activities, responsible staff/partners, and start and end dates, process and outcome measures; and (3) provide goals and objectives with a clear relationship to the need and intent of the grant. As this grant term is for three (3) years, the Project Work Plan must attempt to identify activities/services and estimate timelines for the entire grant term. A minimum of one goal and corresponding objectives, process measures, etc. must be identified.

Applicants must use the Project Work Plan provided below. You will be prompted to upload this document to the BSCC-Submittable Application.

(1) Goal:	> Reduce occurrences of retail theft and vehicle/vehicle accessory theft in Daly City, San Bruno, and San Mateo
Objectives (A., B., etc.)	> A. Reported losses from retail theft will reduce when comparing 2022-2023 data to 2025-2026 data for major retailers in Daly City, San Bruno, and San Mateo police departments' jurisdictions. > B. Vehicle theft and vehicle accessory theft rates will reduce when comparing 2022-2023 data to 2025-2026 data for Daly City, San Bruno, and San Mateo police departments' jurisdictions.
Process Measures and Outcome Measures:	Equipment and technology purchased and deployed by Month 4. Quarterly Organized Retail Theft Task Force efforts beginning Month 1. Quarterly Daly City PD MVT/MVAT Operations efforts beginning Month 1. CSOs recruited and hired by Month 4. Number of retail theft arrests (reviewed monthly). Retail theft losses (reviewed quarterly with data collected internally by local retailers). Merchandise recovered (reviewed monthly). Motor Vehicle Theft reports (reviewed monthly). Motor Vehicle Accessory Theft reports (reviewed monthly). Recovered vehicles, recovered vehicle accessories (reviewed monthly), frequency of useful evidence or leads obtained from ALPR, Dash Cameras, Tracking Devices, Starchase equipment (reviewed monthly).

Project activities that support the identified goal and objectives:	Responsible staff/partners	Timeline	
		Start Date	End Date
Organized Retail Theft Task Force efforts held quarterly, rotating among three partner jurisdictions.	> Daly City PD, San Mateo PD, San Bruno PD.	> 10/01/2023	> 12/31/2026
Additional CSOs in the communities will be equipped to carry out prevention and investigative efforts.	> Daly City PD, San Mateo PD	> 1/01/2024	> 12/31/2026
The C3 Law Enforcement investigative technology enables better coordination, investigations, and data review.	> Daly City PD, San Mateo PD, San Bruno PD.	> 01/01/2024	> 12/31/2026
Additional ALPR, Dash Cameras, Tracking Devices, and Starchase equipment utilized.	> Daly City PD, San Mateo PD, San Bruno PD.	> 01/01/2024	> 12/31/2026
The Daly City PD MVT/MVAT Operations involving DCPD existing bait car to be placed in high-theft areas and monitored with trackers/surveillance.	> Daly City PD	> 12/01/2023	> 12/31/2026

List data and sources to be used to measure outcomes: > Equipment and technology purchased and deployed by Month 8 (Receipts, Training Attendance Logs). Quarterly ORTTF efforts implemented beginning Month 1 (OT records, Number of Arrests, Number of Citations, Number of Vehicles Recovered, Value of Merchandise Recovered). CSOs recruited and hired by Month 4 (Timesheets). Number of retail theft arrests (reviewed monthly within C3). Retail theft loses (reviewed quarterly with data collected internally by local retailers). Merchandise recovered (reviewed monthly within C3). Motor Vehicle Theft reports (reviewed monthly within C3). Motor Vehicle Accessory Theft reports (reviewed monthly within C3). Recovered vehicles, Recovered vehicle accessories (reviewed monthly within C3), Frequency of useful evidence or leads obtained from ALPR, Tracking Devices, Starchase equipment (reviewed monthly within C3 and qualitative officer reports).

BSCC CALIFORNIA

CPGP CORRECTIONS PLANNING AND GRANT PROGRAMS

Organized Retail Theft Prevention Grant Program - Project Budget and Budget Narrative

Name of Applicant: *Daly City Police Department*

44-Month Budget: October 1, 2023 to June 1, 2027

Note: Rows 7-16 will auto-populate based on the information entered in the budget line items (Salaries and Benefits, Services and Supplies, etc.)

Budget Line Item	Total
1. Salaries & Benefits	$1,406,377.00
2. Services and Supplies	$24,040.00
3. Professional Services or Public Agencies	$1,340,260.00
4. Non-Governmental Organization (NGO) Subcontracts	$0.00
5. Data Collection and Evaluation	$382,564.00
6. Equipment/Fixed Assets	$1,724,789.00
7. Financial Audit (Up to $25,000)	$25,000.00
8. Other (Travel, Training, etc.)	$3,130,800.00
9. Indirect Costs	$0.00
TOTAL	**$8,033,830.00**

1a. Salaries & Benefits

Description of Salaries & Benefits	(% FTE or Hourly Rate) & Benefits	Total
1.0 FTE CSO - Daly City.	.5 FTE for FY 24, 1 FTE for FY 25, 1 FTE for FY 26, .5 FTE for FY 27	$512,150.00
Overtime - Daly City (Organized Retail Theft Task Force)	FY 24: 1 Lieutenant @ $174 x 80 hours, 1 Sergeant @ $154 x 80 hours, 3 Officers @ $122 x 240 hours=$114,080 FY 25: 1 Lieutenant @ $184 x 160 hours, 1 Sergeant @ $162 x 160 hours, 3 Officers @ $129 x 320 hours=$179,200 FY 26: 1 Lieutenant @ $190 x 80 hours, 1 Sergeant @ $167 x 80 hours, 3 Officers @ $133 x 320 hours=$156,240 FY 27: 1 Lieutenant @ $195 x 80 hours, 1 Sergeant @ $172 x 80 hours, 3 Officers @ $136 x 160 hours,=$94,640	$544,160.00
Overtime - Daly City (MVT and MVAT Details)	FY 24: 1 Lieutenant @ $174 x 30 hours, 1 Sergeant @ $154 x 30 hours, 6 Officers @ $122 x 30 hours=$31,800 FY 25: 1 Lieutenant @ $184 x 40 hours, 1 Sergeant @ $162 x 40 hours, 6 Officers @ $129 x 40 hours=$44,800 FY 26: 1 Lieutenant @ $190 x 40 hours, 1 Sergeant @ $167 x 40 hours, 6 Officers @ $133 x 40 hours=$46,200 FY 27: 1 Lieutenant @ $195 x 20 hours, 1 Sergeant @ $172 x 20 hours, 6 Officers @ $136 x 20 hours=$23,660	$146,460.00
Overtime - Daly City (Data Compilation)	FY 24: 1 Admin Assistant @ $106 x 70 hours=$7,420 FY 25: 1 Admin Assistant @ $112 x 120 hours=$13,440 FY 26: 1 Admin Assistant @ $116 x 120 hours=$13,920 FY 27: 1 Admin Assistant @ $119 x 60 hours=$7,140	$41,920.00
Hourly Management Analyst - Daly City Grant Manager	$49.02/hr in FY 24 x 480 hours, $53.53/hr in FY 25 x 960 hours, $58.46/hr in FY 26 x 960 hours, $63.84/hr in FY 27 x 480 hours	$161,687.00
		$0.00
		$0.00
		$0.00
	TOTAL	**$1,406,377.00**

1b. Salaries & Benefits Narrative:

Overtime will support expenses for a Lieutenant, Sergeant, and Officers to conduct an Organized Retail Theft Task Force as well as MVT/MVAT prevention and bait car efforts. Community Service Officers will support prevention (through training) and documentation/investigation of ORT, MVT, and MVAT. The Hourly Management Analyst will be ourGrant Manager who will support project oversight and data collection efforts.

2a. Services and Supplies

Description of Services or Supplies	Calculation for Expenditure	Total
Catalytic Converters - Daly City	$2,403.88/unit * 10 units	$24,040.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00

TOTAL	**$24,040.00**

2b. Services and Supplies Narrative:

Catalytic Converters will be placed in bait cars (we already have a bait car) and used in conjunction with the MVT and MVAT details to catch MVTs and MVATs in action.

3a. Professional Services

Description of Professional Service(s)	Calculation for Expenditure	Total
1.0 FTE CSO - San Mateo	1.0 FTE for three years	$500,726.00
Overtime - San Mateo	FY 24: 1 Lieutenant @ $202.21 x 80 hours, 1 Sergeant @ $140.01 x 80 hours, 3 Officers @ $110.40 x 240 hours = $106,865.60 FY 25: 1 Lieutenant @ $208.06 x 80 hours, 1 Sergeant @ $144.20 x 80 hours, 3 Officers @ $113.71 x 320 hours = $137,342.40 FY 26: 1 Lieutenant @ $214.30 x 80 hours, 1 Sergeant @ $148.53 x 80 hours, 3 Officers @ $117.12 x 320 hours = $141,461.60 FY27: 1 Lieutenant @ $220.73 x 80 hours, 1 Sergeant @ $152.99 x 80 hours, 3 Officers @ $120.63 x 160 hours = $87,800.00	$473,470.00
Overtime - San Bruno	FY 24: 1 Lieutenant @ $118.77 x 80 hours, 1 Sergeant @ $142.98 x 80 hours, 2 Officers @ $117.06 x 240 hours = $77,128.80 FY 25: 1 Lieutenant @ $122.34 x 80 hours, 1 Sergeant @ $147.26 x 80 hours, 2 Officers @ $120.57 x 320 hours = $98,732.80 FY 26: 1 Lieutenant @ $126.02 x 160 hours, 1 Sergeant @ $151.67 x 160 hours, 2 Officers @ $124.19 x 320 hours = $123,912.00 FY27: 1 Lieutenant @ $129.84 x 0 hours, 1 Sergeant @ $156.21 x 0 hours, 2 Officers @ $127.92x 160 hours = $40,934.40	$340,708.00
Overtime - San Mateo (Data Compilation)	FY 24: 1 Admin Assistant @ $65.61 x 70 hours=$4,592.70 FY 25: 1 Admin Assistant @ $67.58 x 120 hours=$8,109.60 FY 26: 1 Admin Assistant @ $69.60 x 120 hours=$8,352.00 FY 27: 1 Admin Assistant @ $71.69 x 60 hours=$4,301.40	$25,356.00
		$0.00
		$0.00
		$0.00
		$0.00
TOTAL		**$1,340,260.00**

3b. Professional Services Narrative

Community Service Officer will support prevention (through training) and documentation/investigation of ORT, MVT, and MVAT. Overtime will support expenses for a Lieutenant, Sergeant, and Officers to conduct an Organized Retail Theft Task Force. The Hourly Admin Assistant will support projects and data collection and compilation efforts.

4a. Non-Governmental Organization (NGO) Subcontracts

Description of Non-Governmental Organization (NGO) Subcontracts	Calculation for Expense	Total
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
TOTALS		**$0.00**

4b. Non-Governmental Organization (NGO) Subcontracts Narrative

Enter narrative here. You may expand cell height if needed.

5a. Data Collection and Evaluation

Description of Data Collection and Evaluation	Calculation for Expense	Total

External Evaluator will be contracted to conduct quarterly reviews and ensure project is on track, enabling data-drive decision-making.	Computed at $127,521.33/year * 3 years. ($127.52/hour * 1000 hours annually) This is equal to 5% of the grant request total.	$382,564.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
	TOTALS	**$382,564.00**

5b. Data Collection and Evaluation Narrative

External evaluation will support the data-driven decision-making process, and ensure goals and objectives are met on time and within budget.

6a. Equipment/Fixed Assets

Description of Equipment/Fixed Assets	Calculation for Expense	Total
3SI Tracking Devices - Daly City	12 devices, equipment and service for three years	$19,000.00
Automatic License Plate Readers.	42 ALPR for Daly City ($476,500); 20 ALPR cameras for San Bruno ($303,315), 15 ALPR cameras for San Mateo ($144,750)	$924,565.00
ALPR Trailer - Daly City	One Trailer ($35,000), Outfitted ($10,000)	$45,000.00
Electric Vehicles - Daly City and San Mateo	Daly City: Ford Vehicles, 3 Mach E computed at $70,443.36/vehicle * 3 vehicles; San Mateo: $50,000 for vehicle	$263,000.00
Vehicle Outfitting - Daly City and San Mateo	Vehicle Outfitting: Daly City Computers for 3 vehicles ($14,250); General Outfitting for 3 vehicles ($60,000); Mobile Vehicle Radios for 3 vehicles ($5,000); San Mateo: Computer ($5,000); General Outfitting ($20,000); Mobile Vehicle Radio ($2,000)	$106,250.00
Starchase - Daly City, San Bruno, San Mateo	Daly City: 10 vehicle systems and one handheld launcher system ($122,000); San Bruno: 8 vehicle systems ($93,973.94); San Mateo: 4 vehicle systems ($31,000)	$246,974.00
Pole Trailers - San Mateo	Pole Trailers - San Mateo. 2 Surveillance Pole Camera Trailers $55,000 each	$110,000.00
Remodel of Substation - San Mateo	Remodel / Retrofit for substation at Hillsdale Mall to enable high-speed internet service	$10,000.00
	TOTALS	**$1,724,789.00**

6b. Equipment/Fixed Assets Narrative

3SI Tracking Devices will prevent MVT and MVAT, being placed within bait car (we already have a bait car) catalytic converters.
Automatic License Plate Readers will be fixed throughout the agencies jurisdiction strategically in high ORT, MVT and MVAT areas to assist with prevention and investigations of those types of crimes.
ALPR Trailer to be placed in hotspot locations as a visual deterrent, capture data of ORT, MVT, and MVAT, and assist with awareness campaigns via the message board.
Electric vehicles will be used for CSOs. These vehicles must be outfitted as CSO vehicles prior to deployment (Lights, computers, radios, dash cameras, etc.).
Starchase systems will discharge a projectile that broadcasts relevant GPS information of a fleeing suspect vehicle without having to engage in a pursuit that puts public safety at risk.
Pole Trailers serve as a visual deterrent and help collect evidence when crimes related ORT, MVT, and MVAT occur in hotspot locations.
The substation at Hillsdale Mall will provide a forward-facing dedicated space for law enforcement presence, serving as a visual deterrent and allowing immediate response in the event of an incident.

7a.Financial Audit

Description	Calculation for Expense	Total
Financial Audit	$8,333.33 x 3 years	$25,000.00
		$0.00
		$0.00
		$0.00
		$0.00
		$0.00
	TOTAL	**$25,000.00**

7b. Financial Audit) Narrative:

A financial audit is required for this grant opportunity.

8a.Other (Travel, Training, etc.)		
Description	Calculation for Expense	Total
Mailing Campaign	2 per year Daly City at $1,600/campaign ($9,600); 2 per year at San Bruno at $8,000 per campaign ($48,000); 2 per year at San Mateo at $10,000 per campaign ($60,000)	$117,600.00
Training - to take place in Sacramento	$500/day * 3 days * 5 people	$7,500.00
Amazon Web Services to host the C3 investigative tool Daly City, San Mateo, San Bruno	Daly City ($60,000); San Bruno ($27,000); San Mateo ($65,000)	$152,000.00
C3 Investigative Tool	Daly City ($841,000); San Mateo ($991,000); San Bruno ($686,000)	$2,518,000.00
Axon Dash Cameras. 3 Fleet Vehicle Cameras - Daly City	$350/month/vehicle * 3 vehicles * 34 months (2/24 - 12/26)	$35,700.00
Data Integration Fee	$100,000 each partner city x 3	$300,000.00
	TOTAL	**$3,130,800.00**

8b. Other (Travel, Training, etc.) Narrative:

The mailing campaigns will build community awareness that partners are cracking down on ORT, MVT, MVAT, and will better arm citizens against becoming victims.
Training is required for this grant opportunity.
Amazon Web Services will allow Partners to host the C3 investigative tool that will streamline data tracking amongst different jurisdictions, addressing ORT, MVT, and MVAT.
The C3 investigative tool and the 3 additional source systems, 8 additional feature enhancements, and enhanced Ex-Machina reporting module will allow us to address rising rates of ORT, MVT, and MVAT, providing officers a powerful new tool to investigate and follow leads.
Axon Dash Cameras will capture data in real-time related to ORT, MVT, and MVAT.
Data Integration Fee: The complexity of integrating data sources may incur additional costs associated with the tool connecting with multiple APIs, databases, or third-party platforms. This line item will be needed for additional charges associated with accessing and consolidating data from each source into the C3 investigative tool.

9a. Indirect Costs		
For this grant program, indirect costs may be charged using only **one** of the two options below:	Grant Funds	Total
1) Indirect costs not to exceed 10 percent (10%) of the total grant award. Applicable if the organization **does not have** a federally approved indirect cost rate.	$0	$0
If using Option 1) grant funds allocated to Indirect Costs may not exceed:	***$0***	
2) Indirect costs not to exceed 20 percent (20%) of the total grant award. Applicable if the organization **has** a federally approved indirect cost rate. Amount claimed may not exceed the organization's federally approved indirect cost rate.	$0	$0
If using Option 2) grant funds allocated to Indirect Costs may not exceed:	***$0***	
*Please see instructions tab for additional information regarding Indirect Costs. If the amount exceeds the maximum allowed and/or turns **red**, please adjust it to not exceed the line-item noted.* *TOTAL*	**$0**	**$0**

9b. Indirect Costs Narrative:

Enter narrative here. You may expand cell height if needed. ***If using a federally approved indirect cost rate, please include the rate in the narrative.***

POLICE DEPARTMENT
CITY OF DALY CITY
333-90TH Street
DALY CITY, CA 94015-1895
PHONE: (650) 991-8119

ADDRESS ALL COMMUNICATIONS
TO CHIEF OF POLICE

CHIEF OF POLICE

Letter of Agreement / Local Impact

Daly City Police Department is applying for the Organized Retail Theft Prevention Grant Program.

Together, the Daly City, San Bruno, and San Mateo Police Departments (partner agencies) will launch a coordinated and strategic effort to address and prevent retail and vehicle/accessory theft in the community. Key activities will include:

- Organized Retail Theft Task Force (ORTTF) Days: Held over eight days each quarter, from December 2023 through December 2026, grant funds will support overtime expenses for a Lieutenant, a Sergeant, and Officers to conduct Zero Theft Tolerance days across the partnering agencies jurisdictions. The ORTTF deployments will rotate among various retail locations, within partner agency jurisdictions.
- Daly City PD MVT/MVAT Operations: Once per quarter, Daly City PD would deploy their existing bait car, outfitted with tracking devices on key accessories, throughout hotspot locations within the city in an attempt to combat MVT and MVAT. Tracking devices allow officers to safely track and apprehend suspects after committing an MVT or MVAT. Up to ten additional catalytic converters will be purchased to be used in the bait car in the event they're damaged beyond repair for use in future operations.
- Community Service Officers: An additional CSO will be added to the San Mateo Police Department and the Daly City Police Department from December 2023 through December 2026. Electric vehicles equipped with dash camera technologies will be purchased for Daly City and San Mateo's CSOs, enabling them to capture relevant crime data on-scene at retail locations.
- Community Awareness: An advertising campaign will be conducted from December 2023 through December 2026 to ensure the community is aware the partnering agencies are cracking down on retail and vehicle/accessory theft, and to better arm citizens against becoming victims. A message board trailer with ALPR cameras will also be purchased to share information about preventing vehicle and accessory theft.
- Investigative Tools: The partnering agencies will purchase and utilize a new data aggregation investigative tool (C3.ai Law Enforcement Application) hosted by Amazon Web Services. By leveraging data integration, analysis, collaboration, and data/intelligence sharing, law enforcement personnel would be better equipped to prevent and investigate Organized Retail Theft and motor vehicle theft/accessory theft, enhancing our communities' safety and security. Grant funds will support this technology from January 2024 through December 2026.
- Automatic License Plate Readers: New ALPR cameras will be fixed throughout the partnering agencies' jurisdictions to capture relevant data for investigations related to ORT criminal networks and stolen motor vehicles/accessory theft vehicles.

- Surveillance Pole Camera Trailers: To be deployed to hot-spot locations for ORT, motor vehicle/accessory theft serving as a visual deterrent and collecting evidence when crimes occur. They will benefit the community long beyond the funding period.
- Starchase: Starchase systems will be purchased and utilized to locate and apprehend fleeing motor vehicles. The discharged projectile will broadcast relevant GPS information of a fleeing suspect vehicle without having to engage in a pursuit that puts public safety at risk. This will serve as an investigative tool so police can follow up and hold ORT, MVT, and MVAT suspects accountable while minimizing risk to the community.
- Substation at Hillsdale Mall: A public-facing substation will be established at Hillsdale Mall, ensuring officers and/or a CSO will be onsite, facilitating walk-ins for advice, counter reports, and fast response when crimes occur. Grant funds will cover upgrading the internet connection from the Substation to the San Mateo Police Department. Also, minor upgrades to paint, flooring, and office furniture to support this important service. This resource will benefit the community beyond the funding period.

How the Project Might Impact Retailers: There will be increased law enforcement presence in retail spaces. Community Service Officers will be responding to ORT theft-related incidents and liaising with local retailers to ensure they are aware of best and emerging practices to identify, reduce, and report ORT crimes.

How the Project Might Impact Local Governmental Agencies: A crackdown on theft will increase the number of individuals arrested, served warrants, standing trial, and appearing before the San Mateo County District Attorney's Office.

Working Together to Address Impacts for Retailers: The benefits of the proposed activities outweigh the potential negatives. At this time, theft rates are so high in local stores that retailers report struggling to find staff willing to work. Collaboration enables crime prevention, enhances investigation capabilities, ensures swift response, facilitates intelligence sharing, promotes public safety, and fosters community trust. By joining forces, law enforcement and retailers can create a safer retail environment and mitigate the risks associated with criminal activities, benefiting both businesses and the communities they serve.

Working Together to Address Impacts for Local Governmental Agencies: An increase in arrests, warrants, and appearances will increase the workload for the San Mateo County District Attorney's Office; however, in the long run, these measures will ultimately reduce theft and crime in the community. This is a worthy endeavor.

ADDRESS ALL COMMUNICATIONS
TO CHIEF OF POLICE

POLICE DEPARTMENT
CITY OF DALY CITY
333-90TH Street
DALY CITY, CA 94015-1895
PHONE: (650) 991-8119

CHIEF OF POLICE

Signature Page:

Daly City Police Department	
Title: Acting Chief of Police	Date: 06/27/2023

Victoria's Secret – Daly City	
Title: Manager, Organized Retail Crime	Date: 06/29/2023

Walgreens, 6100 Mission Street, Daly City	
Title: District Manager, Retail and Pharmacy Operation	Date: 6/28/23

Walgreens, 216 Westlake Center, Daly City	
Title: District Manager, Retail and Pharmacy Operation	Date: 6/28/23

Walgreens, 22 San Pedro Road, Daly City	
Title: District Manager, Retail and Pharmacy Operation	Date: 6/28/23

Macy's – Daly City	
Alejandro Flores	
Title: Asset Protection Captain	Date: 6/30/23

Dick's Sporting Goods – Daly City	
Title: Loss Prevention Manager	Date: 6/28/23

Serramonte Shopping Center – Daly City	
Title: Asst. Account Manager	Date: 6/29/23

Victoria's Secret – Daly City	
Title: TAP Supervisor	Date: 6/30/23

Target Serramonte Center – Daly City	
Daimir A. Davis	
Title: Asset Protection	Date: 06/30/23

Target Westlake Shopping Center – Daly City	
AVL OR PRINTED	
Title: ASSET PROTECTION TEAM LEAD	Date: 06/30/2023

Old Navy – Daly City	
Orlando Torres	
Title: External Investigations Manager	Date: 06/29/2023

San Mateo County District Attorney's Office	
Stephen M. Wagstaffe	
Title: District Attorney	Date: June ~~28~~ 30, 2023

serramonte

To: Board of State and Community Corrections
Re: The Organized Retail Theft Prevention Grant Program
Date: June 28, 2023

This letter is being submitted to document that Serramonte Center agrees to the following in connection with the Organized Retail Theft Prevention Grant Program proposal being submitted by the Daly City Police Department.

As a part of this grant, Serramonte Center agrees to support project efforts by responding to requests from the Daly City Police Department to share theft statistics data, if any, that Serramonte Center may have available to provide with respect to the Serramonte Shopping Center, located at 3 Serramonte Center, Daly City, CA. 94015

Signed by,

John Colucci
General Manager

NORTHWOOD RETAIL

HILLSDALE SHOPPING CENTER

June 29, 2023

Board of State and Community Corrections
2590 Venture Oaks Way, Suite 200
Sacramento, CA 95833

Re: The Organized Retail Theft Prevention Grant Program

To Whom It May Concern:

This letter is being submitted to confirm that HSC Property Owners as the owners of Hillsdale Shopping Center, are aware of and hereby agree to partner on the Organized Retail Theft Prevention Grant Program proposal being submitted by the San Mateo Police Department.

As a part of this grant HSC Property Owners, through its ownership and management of Hillsdale Shopping Center, agrees to partner with the San Mateo Police Department in working to reduce organized retail theft. Through partnership with management on Community Policing through Environmental Design best practices, engagement and information sharing with Mall Security, and coordination with individual mall tenants and retailers, HSC Property Owners eagerly welcomes the chance to join with the San Mateo Police Department in improving public safety in this area.

Respectfully,

Larry Ivich
Senior Vice President/ General Manager
Hillsdale Shopping Center

Walgreens

151 E. 3rd Avenue San Mateo, CA 94401

June 29, 2023

Daly City Police Department
333 90th St.
Daly City, CA 94015

Subject: Partnership Request to Combat Organized Retail Crime (ORC)

Dear Daly City Police Department,

I am writing on behalf of Walgreens to express our commitment to supporting local law enforcement departments in their efforts to combat Organized Retail Crime (ORC) in Daly City, CA. We recognize the importance of collaboration between law enforcement agencies and retailers like us to address this growing challenge effectively.

At Walgreens, we take ORC seriously, and we are actively working to mitigate its impact on our operations and the safety of our team members, patients and customers. We understand the crucial role law enforcement plays in investigating and apprehending those responsible for these criminal activities. In line with our commitment, we would like to extend our support to your department by assisting in obtaining grants dedicated to fighting ORC.

Our data reveals that Walgreens loses 12% of profits due to product shrink across our 539 stores in California. The retail value of our total annual losses in California is higher than any other state in the country with CA stores losing 2.6 times more than the average store in the chain. Our rate of internally reported incidents of criminal activity in CA is 2.4 times more than our national per store average. This significant financial burden not only affects our profitability but more importantly, negatively impacts our team members' safety, job satisfaction, and overall customer/patient experience. This grant funding will increase Daly City Police Department's resources which will reduce retail losses and create a safer environment for our team members, patients and customers.

It is crucial that we address this issue collectively, pooling our resources, expertise, and strategies. By joining forces, we can develop proactive measures to prevent ORC, identify and apprehend offenders, and create a deterrent effect that will ultimately protect our businesses and communities we serve. We firmly believe that grant funding and a strong partnership between Walgreens and The Daly City Police Department will be instrumental in achieving this shared goal.

Thank You,

Jose Barreto

Jose Barreto
Major Crimes Investigations Manager
Walgreen Co.

CITY OF SAN BRUNO
POLICE DEPARTMENT

To: Board of State and Community Corrections

Re: The Organized Retail Theft Prevention Grant Program

Date: June 28, 2023

This letter is being submitted to document that San Bruno Police Department agrees to partner on the Organized Retail Theft Prevention Grant Program proposal being submitted by Daly City Police Department.

As a part of this grant, San Bruno Police Department agrees to heighten efforts to address retail and vehicle theft across partnering agencies' jurisdictions, sharing data with Daly City Police Department and San Mateo Police Department to better coordinate efforts. San Bruno PD will participate in retail Zero Tolerance Days identified by Daly City Police Department and work to coordinate responses to retail and vehicle/accessory theft.

The San Bruno Police Department is not debarred in participating in BSCC grants.

The San Bruno Police Department enthusiastically supports these efforts to reduce retail and vehicle theft in the community, where rising rates continue to threaten the safety and well-being of residents.

Signed by,

Brent Schimek, Police Captain
San Bruno Police Department

1177 Huntington Avenue, San Bruno, CA 94066-1500
Voice: (650) 616-7100 • Fax: (650) 871-6734
http://sanbruno.ca.gov

San Mateo Police Department

200 Franklin Parkway
San Mateo, CA 94403-1921
Telephone: 650-522-7710
FAX: 650-522-7601

June 29th, 2023

To: Board of State and Community Corrections
Re: The Organized Retail Theft Prevention Grant Program

This letter is being submitted to document that San Mateo Police Department agrees to partner on the Organized Retail Theft Prevention Grant Program proposal being submitted by Daly City Police Department.

As a part of this grant, San Mateo Police Department agrees to heighten efforts to address retail and vehicle theft across partnering agencies' jurisdictions, sharing data with Daly City Police Department and San Bruno Police Department to better coordinate efforts. San Mateo PD will participate in retail Zero Tolerance Days identified by Daly City Police Department and work to coordinate responses to retail and vehicle / accessory theft.

The San Mateo Police Department is not barred from participating in BSCC grants, and it enthusiastically supports these efforts to reduce retail and vehicle theft in the community, where rising rates continue to threaten the safety and well-being of residents.

Sincerely,

Ed Barberini
Chief of Police
San Mateo Police Department
200 Franklin Pkwy
San Mateo, CA 94403
(650) 522-7600

Bias-Based Policing

402.1 PURPOSE AND SCOPE

This policy provides guidance to Daly City Police Department members that affirms the Daly City Police Department's commitment to policing that is fair and objective.

Nothing in this policy prohibits the use of specified characteristics in law enforcement activities designed to strengthen the Daly City Police Department's relationship with its diverse communities (e.g., cultural and ethnicity awareness training, youth programs, community group outreach, partnerships).

402.2 POLICY

The Daly City Police Department is committed to providing law enforcement services to the community with due regard for the racial, cultural or other differences of those served. It is the policy of this department to provide law enforcement services and to enforce the law equally, fairly, objectively and without discrimination toward any individual or group.

The Daly City Police Department expressly prohibits racial and identity profiling.

The Daly City Police Department is committed to providing services and enforcing laws in a professional, non-discriminatory, fair, and equitable manner that keeps both the community and officers safe and protected.

The Daly City Police Department recognizes that explicit and implicit bias can occur at both an individual and an institutional level and is committed to addressing and eradicating both.

The intent of this policy is to increase the Daly City Police Department's effectiveness as a law enforcement agency and to build mutual trust and respect with the city's diverse groups and communities.

A fundamental right guaranteed by the Constitution of the United States is equal protection under the law guaranteed by the Fourteenth Amendment. Along with this right to equal protection is the fundamental right to be free from unreasonable searches and seizures by government agents as guaranteed by the Fourth Amendment.

The Daly City Police Department is charged with protecting these rights. Police action that is biased is unlawful and alienates the public, fosters distrust of police, and undermines legitimate law enforcement efforts.

All employees of the Daly City Police Department are prohibited from taking actions based on actual or perceived personal characteristics, including but not limited to race, color, ethnicity, national origin, age, religion, gender identity or expression, sexual orientation, or mental or physical disability, except when engaging in the investigation of appropriate suspect-specific activity to identify a particular person or group.

Daly City Police personnel must not delay or deny policing services based on an individual's actual or perceived personally-identifying characteristics.

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402.3 DEFINITIONS

Racial or Identity Profiling: the consideration of, or reliance on, to any degree, actual or perceived race, color, ethnicity, national origin, age, religion, gender identity or expression, sexual orientation, or mental or physical disability in deciding which persons to subject to a stop or in deciding upon the scope or substance of law enforcement activities following a stop, except that an officer may consider or rely on characteristics listed in a specific suspect description. Such activities include, but are not limited to, traffic or pedestrian stops, or actions taken during a stop, such as asking questions, frisks, consensual and nonconsensual searches of a person or any property, seizing any property, removing vehicle occupants during a traffic stop, issuing a citation, and making an arrest.

Bias-Based Policing: conduct by peace officers motivated, implicitly or explicitly, by the officer's beliefs about someone based on the person's actual or perceived personal characteristics, i.e., race, color, ethnicity, national origin, age, religion, gender identity or expression, sexual orientation, or mental or physical disability.

Implicit Bias: the attitudes or stereotypes that affect a person's understanding, actions, and decisions in an unconscious manner. These biases, which encompass both favorable and unfavorable assessments, are activated involuntarily and without an individual's awareness or intentional control. Implicit biases are different from known biases that individuals may choose to conceal.

Bias by Proxy: when an individual calls/contacts the police and makes false or ill-informed claims of misconduct about persons they dislike or are biased against based on explicit racial and identity profiling or implicit bias. When the police act on a request for service based in unlawful bias, they risk perpetuating the caller's bias. Members should use their critical decision-making skills, drawing upon their training to assess whether there is criminal conduct.

Reasonable Suspicion to Detain: reasonable suspicion is a set of specific facts that would lead a reasonable person to believe that a crime is occurring, had occurred in the past or is about to occur. Reasonable suspicion to detain is also established whenever there is any violation of law. Reasonable suspicion cannot be based solely on a hunch or instinct.

Detention: a seizure of a person by an officer that results from physical restraint, unequivocal verbal commands, or words or conduct by an officer that would result in a reasonable person believing that he or she is not free to leave or otherwise disregard the officer.

Reasonable Suspicion to Conduct a Pat Search: officers are justified in conducting a pat search if officers have a factual basis to suspect that a person is carrying a weapon, dangerous instrument, or an object that can be used as a weapon, or if the person poses a danger to the safety of the officer or others. Officers must be able to articulate specific facts that support an objectively reasonable apprehension of danger under the circumstances and not base their decision to conduct a pat search on any perceived individual characteristics. Reasonable suspicion to conduct a pat search is different than reasonable suspicion to detain. The scope of the pat search is limited

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only to a cursory or pat-down search of the outer clothing to locate possible weapons. Once an officer realizes an object is not a weapon or an object that can be used as a weapon, the officer must move on.

Probable Cause to Arrest: under the Fourth Amendment to the United States Constitution, arrests must be supported by probable cause. Probable cause to arrest is a set of specific facts that would lead a reasonable person to objectively believe and strongly suspect that a crime was committed by the person to be arrested.

402.4 BIAS-BASED POLICING PROHIBITED

Bias-based policing is strictly prohibited. Any employee of the Daly City Police Department who has knowledge of, or has any information about, conduct that would amount to a violation of this policy shall immediately report that information to a supervisor.

During a contact, misunderstandings may occur from an officer's failure to explain why contact was made. The officer should inform the subject of the reason for the contact if it will not compromise the safety of officers or other persons or an investigation.

Nothing in this policy shall limit an officer's ability to interview witnesses or discourage routine conversations or consensual contacts with citizens.

Nothing in this policy is intended to prohibit an officer from considering protected characteristics in combination with credible, timely and distinct information connecting a person or people of a specific characteristic to a specific unlawful incident, or to specific unlawful incidents, specific criminal patterns or specific schemes.

402.4.1 CALIFORNIA RELIGIOUS FREEDOM ACT

Members shall not collect information from a person based on religious belief, practice, affiliation, national origin or ethnicity unless permitted under state or federal law (Government Code § 8310.3).

Members shall not assist federal government authorities (Government Code § 8310.3):

(a) In compiling personal information about a person's religious belief, practice, affiliation, national origin or ethnicity.

(b) By investigating, enforcing or assisting with the investigation or enforcement of any requirement that a person register with the federal government based on religious belief, practice, or affiliation, or national origin or ethnicity.

402.5 COMMUNITY ENCOUNTERS

To cultivate and foster transparency and trust with all communities, each [agency] member should do the following when conducting pedestrian or vehicle stops or otherwise interacting with members of the public, unless circumstances indicate it would be unsafe to do so:

1. Be courteous, professional, and respectful.
2. Introduce themselves to the community member.

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3. State the reason for the stop as soon as practicable, unless providing this information will compromise officer or public safety or a criminal investigation.
4. Answer questions that the individual may have about the stop/contact.
5. Ensure that detention is no longer than necessary to take appropriate action for the known or suspected offense and [agency] member convey the purpose of any reasonable delays.
6. All Daly City personnel, including non-sworn staff, shall not use harassing, intimidating, derogatory, or prejudiced language, including profanity or slurs, particularly when related to an individual's actual or perceived individual characteristics.
7. Sworn personnel shall be aware of and take steps to curb the potential for bias by proxy in a call for service.
8. Officers should draw upon their training and use their critical decision-making skills to assess whether there is criminal conduct and to be aware of implicit bias and bias by proxy when carrying out their duties.
9. All Daly City personnel, including non-sworn personnel, shall aim to build community trust through all actions they take.

402.6 SUPERVISOR RESPONSIBILITIES

Supervisors are responsible for monitoring and examining all areas of police actions and activities under their command to ensure that employees comply with this policy and to ensure that bias-based policing and racial profiling are not practiced.

Supervisors who fail to respond to, document, or review allegations of bias-based policing will be subject to remedial action.

402.7 COMPLAINTS

All reports or complaints of bias-based policing or racial profiling will be documented and investigated.

402.8 TRAINING

Training on fair and objective policing and review of this policy should be conducted as directed by the Training Unit.

(a) All sworn members of this [department/office] will be scheduled to attend Peace Officer Standards and Training (POST)-approved training on the subject of bias-based policing.

(b) Pending participation in such POST-approved training and at all times, all members of this [department/office] are encouraged to familiarize themselves with and consider racial and cultural differences among members of this community.

(c) Each sworn member of this [department/office] who received initial bias-based policing training will thereafter be required to complete an approved refresher course every

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five years, or sooner if deemed necessary, in order to keep current with changing racial, identity and cultural trends (Penal Code § 13519.4(i)).

(d) The Daly City Police Department will ensure that, at a minimum, all officers and employees are compliant with requirements regarding bias-free policing training.

(e) Daly City Officers should be mindful of their training on implicit bias and regularly reflect on specific ways their decision-making may be vulnerable to implicit bias.

402.9 REPORTING TO CALIFORNIA DEPARTMENT OF JUSTICE

The Management Control and Audit Manager shall ensure that all data required by the California Department of Justice (DOJ) regarding complaints of racial bias against officers is collected and provided to the Records Supervisor for required reporting to the DOJ (Penal Code § 13012; Penal Code § 13020). See the Records Division Policy.

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Automated License Plate Readers (ALPRs)

457.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance for the capture, storage and use of digital data obtained through the use of Automated License Plate Reader (ALPR) technology.

457.2 ADMINISTRATION OF ALPR DATA

All installation and maintenance of ALPR equipment, as well as ALPR access shall be managed by the Operations Support Bureau Commander. The Operations Support Bureau Commander will assign personnel under his/her command to administer the day-to-day operation of the ALPR equipment and data.

All data collected by ALPR technology is downloaded to a server housed and maintained by the Northern California Regional Intelligence Center (NCRIC). In compliance with SB 34 refer to the attached policy of the NCRIC:

http://www.dalycity.org/City_Hall/Departments/police_department/Automated_License_Plate_Reader.htm

457.2.1 ALPR ADMINISTRATOR

The Operations Support Bureau Commander shall be responsible for developing guidelines and procedures to comply with the requirements of Civil Code § 1798.90.5 et seq. This includes, but is not limited to (Civil Code § 1798.90.51; Civil Code § 1798.90.53):

(a) A description of the job title or other designation of the members and independent contractors who are authorized to use or access the ALPR system or to collect ALPR information.

(b) Training requirements for authorized users.

(c) A description of how the ALPR system will be monitored to ensure the security of the information and compliance with applicable privacy laws.

(d) Procedures for system operators to maintain records of access in compliance with Civil Code § 1798.90.52.

(e) The title and name of the current designee in overseeing the ALPR operation.

(f) Working with the Custodian of Records on the retention and destruction of ALPR data.

(g) Ensuring this policy and related procedures are conspicuously posted on the department's website.

457.3 OPERATIONS

Use of an ALPR is restricted to the purposes outlined below. Department members shall not use, or allow others to use the equipment or database records for any unauthorized purpose (Civil Code § 1798.90.51; Civil Code § 1798.90.53).

(a) An ALPR shall only be used for official law enforcement business.

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(b) An ALPR may be used in conjunction with any routine patrol operation or criminal investigation. Reasonable suspicion or probable cause is not required before using an ALPR.

(c) While an ALPR may be used to canvass license plates around any crime scene, particular consideration should be given to using ALPR-equipped cars to canvass areas around homicides, shootings and other major incidents. Partial license plates reported during major crimes should be entered into the ALPR system in an attempt to identify suspect vehicles.

(d) No member of this department shall operate ALPR equipment or access ALPR data without first completing department-approved training.

(e) No ALPR operator may access department, state or federal data unless otherwise authorized to do so.

(f) If practicable, the officer should verify an ALPR response through the California Law Enforcement Telecommunications System (CLETS) before taking enforcement action that is based solely on an ALPR alert.

457.4 DATA COLLECTION AND RETENTION

The Operations Support Bureau Commander is responsible for ensuring systems and processes are in place for the proper collection and retention of ALPR data. Data will be transferred from vehicles to the designated storage in accordance with department procedures.

All ALPR data downloaded to the server should be stored for a minimum of one year (Government Code § 34090.6) and in accordance with the established records retention schedule. Thereafter, ALPR data should be purged unless it has become, or it is reasonable to believe it will become, evidence in a criminal or civil action or is subject to a discovery request or other lawful action to produce records. In those circumstances the applicable data should be downloaded from the server onto portable media and booked into evidence.

457.5 ACCOUNTABILITY

All data will be closely safeguarded and protected by both procedural and technological means. The Daly City Police Department will observe the following safeguards regarding access to and use of stored data (Civil Code § 1798.90.51; Civil Code § 1798.90.53):

(a) All ALPR data downloaded to the mobile workstation and in storage shall be accessible only through a login/password-protected system capable of documenting all access of information by name, date and time (Civil Code § 1798.90.52).

(b) Members approved to access ALPR data under these guidelines are permitted to access the data for legitimate law enforcement purposes only, such as when the data relate to a specific criminal investigation or department-related civil or administrative action.

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(c) ALPR system audits should be conducted on a regular basis.

For security or data breaches, see the Records Release and Maintenance Policy.

457.6 RELEASING ALPR DATA

The ALPR data may be shared only with other law enforcement or prosecutorial agencies for official law enforcement purposes or as otherwise permitted by law, using the following procedures:

(a) The agency makes a written request for the ALPR data that includes:

1. The name of the agency.
2. The name of the person requesting.
3. The intended purpose of obtaining the information.

(b) The request is reviewed by the Operations Support Bureau Commander or the authorized designee and approved before the request is fulfilled.

(c) Forwarded to NCRIC for review.

Requests for ALPR data by non-law enforcement or non-prosecutorial agencies will be processed as provided in the Records Maintenance and Release Policy (Civil Code § 1798.90.55).

457.7 POLICE ASSISTANT USE

(a) The primary use for Police Assistants will be using the LPR vehicle to detect and process scofflaw vehicles -or- vehicles with 5 or more delinquent parking citations on file.

(b) The vehicle(s) equipped with an LPR system can be used by any police assistant when that vehicle is not being driven by its assigned driver(s).

(c) The driver(s) of the LPR equipped vehicle(s) must alert the designated boot team of the day whenever they get a hit on a vehicle with 5 or more parking citations. The driver will take note of the location of the hit and the vehicle description, and send it to the boot team promptly via messaging or a phone call; this should be done right away and not held until the end of shift. Although the system tracks all hits/locations throughout the day, the report is not available until the following day from a computer at the station.

(d) A secondary function of the LPR system is that it will detect 10851 stolen vehicles that are in the Stolen Vehicle System database. Police Assistants will follow normal protocol as if they had manually run the license plate via the computer or police radio.

(e) Selection of the LPR equipped vehicle(s) will be done by seniority during the semi-annual watch change, per standard practice.

(f) The LPR equipped vehicle(s) should ot be used for Court Officer duties and other details that involve sitting idle for extended periods of time. Maximum exposure is important to ensure that the department is taking full advantage of this resource.

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(g) The LPR vehicle(s) should also be taken to DUI checkpoints where having such a vehicle scanning license plates passing through the screening lane(s) would be beneficial.

457.8 TRAINING

The Training Sergeant should ensure that members receive department-approved training for those authorized to use or access the ALPR system (Civil Code § 1798.90.51; Civil Code § 1798.90.53).

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Global Positioning System (GPS) Devices

604.1 PURPOSE AND SCOPE

The purpose of this policy is to provide guidance for the for the use and deployment of GPS tracking devices.

604.2 DEFINITIONS

GPS tracking device- Any device that utilizes Global Positioning System technology to track the location of an entity or object remotely

Electronic Surveillance- (for the purpose of this policy)-surveillance or the gathering of information by surreptitious use of electronic devices.

604.3 POLICY

It is the policy of the Daly City Police Department to utilize GPS tracking devices in a manner that will assist in criminal investigations and prosecutions, by providing investigative leads and information deemed necessary for the prosecution of offenders.

604.4 OPERATIONAL USE

The Daly City Police Department will utilize GPS tracking devices for the purpose of remotely tracking and locating known and unknown suspects. Legal justification for the use and deployment of GPS tracking devices is required before any such use.

The surreptitious deployment of GPS tracking devices in the field should be done with at least one other officer to mitigate safety concerns, when practicable.

A supervisor should be noted, when feasible, before any in field GPS tracking device deployment.

604.5 TRAINING

Any officer utilizing or deploying a GPS tracking device shall be trained in the use, deployment and safety concerns related to deployment, prior to the use of GPS tracking devices.

604.6 STORAGE AND MAINTENANCE

All storage and maintenance of GPS tracking devices shall be coordinated through the Investigations Division. The Investigations Division Sergeant is responsible for maintaining a log of the GPS tracking devices in use, the purpose of their use, and the name of the officer utilizing the device.

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StarChase Pursuit Management System Procedure

405.1 PURPOSE AND SCOPE

This procedure provides direction and operational guidelines for the use of the StarChase Pursuit Managment System. The StarChase system allows an officer to remotely affix a GPS tracking device to a pursued (or about to be pursued) vehicle using an air pressure system to discharge the tracker from the front of the StarChase equipped patrol car. Once the tracker is affixed to the vehicle in question, its location can be tracked by an employee (StarChase Monitor) using a computer with an internet connection.

405.2 OPERATIONAL GUIDELINES

The StarChase system should be used in conjunction with all rules and guidelines as outlined in the Daly City Police Department (DCPD) Policy Manual. The StarChase system shall only be used in situations where it is reasonable to believe that a suspect has committed, is about to commit, or is threatening to commit either:

(a) A felony or

(b) A misdemeanor violation involving a weapon, violence, or risk of serious harm independent of a vehicle pursuit.

For the purpose of clarity of communications, radio traffic should identify the device as "StarChase".

StarChase equipment will only be operated by officers who have been trained in its use. StarChase equipped vehicles will not be assigned to officers who are not trained on its use unless required by exigent circumstances.

When feasible, Officers should receive permission from a supervisor prior to deploying the StarChase tag on a pursued vehicle.

All safety decisions related to the discharge of a StarChase tag shall be evaluated by the operator prior to deployment. While supervisors may direct or approve the deployment of a StarChase equipped patrol car in a pursuit and/or the discharge of a tag, safety decisions related to passing other involved vehicles and the actual discharge of the device will be evaluated by the operator prior to deployment. In accordance with policy, the safety of officers, uninvolved persons, and persons inside the pursued vehicle shall be considered. The following decisions are specifically included:

(a) Whether the officer can safely maneuver close enough to the suspect vehicle to come within targeting range.

(b) Whether the officer can safely pass any other vehicle involved in the pursuit.

(c) Whether any circumstance would indicate the device would not work (e.g. , weather conditions, suspect vehicle weaving, etc.)

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StarChase equipped patrol cars, with approval from a supervisor, are authorized to respond Code 3 to join a pursuit for the potential use of the device.

Unless directed otherwise, the StarChase equipped vehicle will join the pursuit at the rear of authorized pursuing vehicles until cleared to pass.

Once a StarChase equipped vehicle joins a pursuit, it becomes an authorized unit related to the number of authorized pursuing vehicles.

StarChase equipped vehicles may pass other pursuing vehicles only when deemed safe and only with specific permission from the unit to be passed.

Permission is to be sought and acknowledged one passing at a time. Officers driving the StarChase equipped vehicle will identify which side of the overtaken vehicle they will pass.

StarChase tags will be deployed in accordance with training.

Once the StarChase tag has been successfully deployed, pursuing vehicles should normally drop back significantly from the suspect vehicle.

The StarChase Monitor will be a Dispatcher or StarChase trained operator/supervisor.

Officers will maintain constant communication with the StarChase Monitor for speed/ direction/ location updates of the suspect vehicle.
The Supervisor will coordinate with the StarChase Monitor to direct resources and officers to appropriate locations to apprehend the suspect. The patrol supervisor will dictate who the monitor is based on resources, 'know how', etc...

No officer who is driving a moving patrol car will access the StarChase Monitor data as this creates an unnecessary hazard.

405.3 TACTICAL CONSIDERATIONS

The StarChase tag will not normally be deployed in the following situations unless the suspect poses a substantial risk to the public:

- During heavy rain
- While driving on exceptionally rough terrain
- On a motorcycle
- When pedestrians are between or very near the suspect vehicle and the StarChase equipped vehicle

In addition to the normal pursuit reporting procedures required by policy, Officers who use the StarChase system will report all tag deployments.

405.4 DOCUMENTATION

All deployments of the StarChase system shall be appropriately documented by the officer in the incident report and/or supplemental narrative reports (to include selecting the "STARCHASER"

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special circumstance drop-down option in RIMS). The sergeant shall complete the StarChase Deployment Review Form. The form, with all supporting documentation, shall be forwarded to the Field Operations Bureau Captain for review. Once approved, it will be retained in IApro. The form will not be attached to any associated crime report, incident report, or documentation in RIMS.

405.5 PROGRAM OVERSIGHT

The StarChase Pursuit Management System program is managed by the Field Operations Bureau Captain or their designee. The Field Operations Bureau Captain, or their designee, should conduct annual audits of the program to assess its use, effectiveness, and potential improvements to the program and this procedure. Training on this program should be provided to appropriate personnel on an annual basis.

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APPENDIX A: Organized Retail Theft Grant Program Scoring Panel Roster

	Name	Title	Organization / Agency
1	Ryan Allain	Director	Government Affairs, California Retailers Association
2	Chesa Boudin	Executive Director	Criminal Law & Justice Center – UC Berkeley School of Law
3	Michelle Brown	Retired Chief Probation Officer	San Bernardino County
4	Derek Casebeer	Chief Deputy	Sacramento County Probation Department
5	Tracie Cone	Public Information Officer	Board of State and Community Corrections
6	Jason Craven	Officer	CA Highway Patrol Organized Retail Crime Task Force & Sacramento County Auto Theft Suppression Task Force
7	Jason Daughrity	Retired CHP Captain	Commander of Field Support Section
8	Sandra Dinong	Associate Governmental Program Analyst	Board of State and Community Corrections
9	Evonne Garner	Retired Deputy Director	Board of State and Community Corrections
10	Mary Jolls	Retired Deputy Director	Board of State and Community Corrections
11	Nicole Kirkaldy	Restorative Justice and Diversion Program Director	Yolo County District Attorney's Office
12	Mercedes Morales	Associate Governmental Program Analyst	Board of State and Community Corrections
13	Ryan Okimura	Staff Services Manager I	Board of State and Community Corrections
14	Nancy O'Malley	Retired District Attorney	Alameda County
15	Chelsea Paez	Staff Services Manager I	Board of State and Community Corrections
16	Bao Phan	Associate Governmental Program Analyst	Board of State and Community Corrections
17	Rodney Rego	Captain	Elk Grove Police Department
18	Michelle Solorzano	Sr. Project Manager	City of El Monte
19	Ashley Taylor	Associate Governmental Program Analyst	Board of State and Community Corrections
20	Eric Taylor	Sheriff	San Benito County

APPENDIX B: Grantee Assurance for Non-Governmental Organizations

The Organized Retail Theft Grant Program Request for Proposals (RFP) includes requirements that apply to non-governmental organizations (NGOs)[1] providing services with grant funds. Grantees are responsible for ensuring that all contracted third parties continually meet these requirements as a condition of receiving funds. The RFP describes these requirements as follows:

Any non-governmental organization that receives Organized Retail Theft Grant Program Grant funds (as either a subgrantee or subcontractor) must:

- Have been duly organized, in existence, and in good standing for at least six (6) months prior to the effective date of its fiscal agreement with the BSCC or with the Organized Retail Theft Grant Program grantee;
    - Non-governmental entities that have recently reorganized or have merged with other qualified non-governmental entities that were in existence prior to the six (6) month date are also eligible, provided all necessary agreements have been executed and filed with the California Secretary of State prior to the start date of the grant agreement with the BSCC or the start date of the grantee subcontractor fiscal agreement;
- Be registered with the California Secretary of State's Office, if applicable;
- Have a valid Employer Identification Number (EIN) or Taxpayer ID (if sole proprietorship);
- Have a valid business license, if applicable;
- Have no outstanding civil judgments or liens;
- Have any other state or local licenses or certifications necessary to provide the services requested (e.g., facility licensing by the Department of Health Care Services), if applicable; and
- Have a physical address within California. (An agent for service of process with a California address is insufficient.)

Completing the NGO Assurance (Following Page)

1. Provide the name of the Applicant Agency (the Grantee),
2. List all contracted parties (if known),
3. Check Yes or No to indicate if <u>each</u> contracted part meets the requirements
4. Sign and Submit to the BSCC

NOTE: If the name of the contracted party is unknown or if there will be no contracted parties. Write N/A in the "Name of Contracted Party" field and sign the document.

[1] For the purposes of this RFP, NGOs include nonprofit and for-profit community-based organizations, faith-based organizations, evaluators (except government institutions such as universities), grant management companies, and any other non-governmental agency or individual.

APPENDIX B: Grantee Assurance for Non-Governmental Organizations

Provide your agency name and in the table list information for all contracted parties.

Grantee:

Name of Contracted Party	Address	Email / Phone	Meets All Requirements
			Yes ☐ No ☐
			Yes ☐ No ☐
			Yes ☐ No ☐
			Yes ☐ No ☐
			Yes ☐ No ☐

*Grantees are required to update this list and submit it to BSCC any time a new third-party contract is executed after the initial assurance date. Grantees shall retain (on-site) applicable source documentation for each contracted party that verifies compliance with the requirements listed in the RFP. The BSCC will not reimburse for costs incurred by any third party that does not meet the requirements listed above and for which the BSCC does not have a signed grantee assurance on file.

A signature below is an assurance that all requirements listed above have been met.

AUTHORIZED SIGNATURE **(This document must be signed by the person who is authorized to sign the Grant Agreement.)**			
NAME OF AUTHORIZED OFFICER	TITLE		TELEPHONE NUMBER
STREET ADDRESS	CITY	STATE	ZIP CODE
EMAIL ADDRESS			
SIGNATURE X			DATE

23-27 ORTP Grant Agreement - Daly City Police Department 1150-23

Final Audit Report 2023-09-20

Created:	2023-09-20
By:	Trent Waterman (twaterman@dalycity.org)
Status:	Signed
Transaction ID:	CBJCHBCAABAApw2N-RUklrQz_Emz6R9Lb0JlL3DVFRal

"23-27 ORTP Grant Agreement - Daly City Police Department 1 150-23" History

Document created by Trent Waterman (twaterman@dalycity.org)
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Document emailed to cchristensen@dalycity.org for signature
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Email viewed by cchristensen@dalycity.org
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Signer cchristensen@dalycity.org entered name at signing as Cameron Christensen
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Document e-signed by Cameron Christensen (cchristensen@dalycity.org)
Signature Date: 2023-09-20 - 7:39:00 PM GMT - Time Source: server

Agreement completed.
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Adobe Acrobat Sign

Redaction Date: 10/13/2026 1:55:22 PM

Redaction Log

Total Number of Redactions in Document: 1

Redaction Reasons by Page

Page	Reason	Description	Occurrences
4	Emp Personal Info	Home address, home telephone numbers, personal cellular telephone numbers, and birthdates of public agency employees (Gov. Code § 7928.300).	1

Redaction Log

Redaction Reasons by Exemption

Reason	Description	Pages (Count)
Emp Personal Info	Home address, home telephone numbers, personal cellular telephone numbers, and birthdates of public agency employees (Gov. Code § 7928.300).	4(1)